OnSide SOFTWARE

OnTrial User Manual

The OnTrial Notebook (Standard and Professional editions) and the OnTrial Hearing Notebook

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Part One: Getting started

What the notebooks are

OnTrial makes two notebooks for civil litigators. Each one is a single fillable PDF that works like a paper trial binder: tabs down the side, a page for everything, and room to write. Because it is a PDF, it runs in apps you already have, and what you type stays on your own device.

- **The OnTrial Notebook** organizes a trial from the day it is set to the closing argument: checklists, proof charts, witness outlines, exhibit lists, deposition designations, examination scripts, the objections table, jury pages, a live trial log, and closing pages. It comes in two editions, Standard and Professional.
- **The OnTrial Hearing Notebook** is built for a motion or evidentiary hearing: a one-page Speaking Outline you argue from, a Preparation Outline behind each point, the facts and authorities behind each point, a Rebuttal page, the record, and a place for copies of cases and papers.

	Standard	Professional
Rules	Federal Rules of Evidence and Civil Procedure, with a blank for your state's rule beside each	The same, with your state's rules filled in; more states can be added, each as its own State Rules section
Witnesses	10	20
Claims (proof charts)	6	10, plus a Defenses Dashboard and 10 defense charts
Exhibits (ours / adverse)	85 / 51	170 / 102
Trial days (day plans / log pages)	5 / 8	10 / 16
Deposition designation pages	3	6
Jury panel tracker pages	3	5
Print buttons on list pages	No	Yes

	Standard	Professional
Add your own pages	No (the pages are locked so the notebook stays in order)	Yes, at the end of the notebook
Hearing Notebook	Sold separately	Included

Everything else in this manual applies to both editions. Where a feature is in the Professional edition only, the manual says so.

What you need: the right app on each device

Device	Use	Do not use
iPad	**PDF Viewer by Nutrient** (from the App Store)	Acrobat Reader for iPad, Apple Books, or the Files app's preview. They show the pages but do not run all of the notebook's buttons.
Mac or Windows computer, desktop or laptop	**Adobe Acrobat Reader** (free from Adobe)	Apple Preview, Microsoft Edge, or any web browser.

- **Build each case copy on your computer** in Acrobat Reader, where typing is fastest.
- **In court**, use the iPad in PDF Viewer, or a laptop in Acrobat Reader. On a laptop, use Full Screen Mode (Command-L on a Mac, Ctrl-L on Windows); the arrow keys turn the pages.
- **Never save a notebook in Apple Preview.** Preview strips out the buttons and scripts, and they do not come back. If that happens, start a new copy from your blank master and copy your entries across.
- **Work on one device at a time.** If the file is open on your iPad while you save it on your computer, you can end up with two versions. Close it on one device before you open it on the other.

Set up PDF Viewer on the iPad

Do this once, before the first time you take a notebook to court. In PDF Viewer, open a notebook, tap the gear icon, and set:

Page Transition	Jump
Page Mode	Single
Scroll Direction	Horizontal

Page Fitting	Adaptive
Appearance	Default (the white button)
JavaScript	On, if your app shows this setting

With these settings each page shows whole, one at a time, in the right colors. JavaScript runs the bookmarks, the sticky notes, the fig-tn-admitted Admitted Exhibits page and the other buttons that do more than turn to a page; if it is off, those buttons do nothing. After you change the JavaScript setting, close the notebook and open it again.

> **Tip.** In a large notebook, the first button that runs a script after you open the file can take a few seconds. After that, every tap is quick.

Your blank master and your case copies

1. Keep the file you receive as your **blank master**. Do not type in it.
2. For each case, make a copy (in Acrobat Reader: File, Save As) and give it the case name. That copy is your **case copy**. Your license lets you make as many case copies as you need for your own matters.
3. Build the case copy on your computer, where typing is fastest. Then move it to the iPad (by AirDrop, iCloud Drive, Dropbox, or email to yourself) and open it in PDF Viewer.
4. Back up your case copies the way you back up any client file.

The Standard edition is set so that PDF apps that honor its permissions will not add, remove or move pages; if its page count changes, it shows the Modified copy notice. In the Professional edition you can add pages in your PDF app. Add a **blank** page (a copied notebook page shares its boxes with the original, so typing on one changes both), and add it **at the end** of the notebook: a page inserted in the middle shifts the page numbers that the Print buttons, your bookmarks and the printed page references rely on.

Typing, lists, check boxes and dictation

- **Type once.** Many boxes appear in more than one place under the same name, and they fill each other. Type the case name in the CASE box at the top right of any page and it fills every page and the title page. A witness name typed on the Roster fills that witness's Profile, Direct and Cross pages.
- **Lists.** Some boxes are drop-down lists (side, strength, ruling, status and the like). Tap the box and pick a choice.
- **Check boxes.** Tap anywhere in the cell to tick or untick.
- **The yellow tint.** PDF Viewer tints a box yellow while you type in it. That is the app showing you where you are typing; the tint goes away when you leave the box.
- **Dictation.** Tap a text box and speak instead of typing. On the iPad, tap the microphone key on the keyboard (turn it on in Settings, General, Keyboard, Enable Dictation). On a Mac, press the Fn (globe)

key twice, or choose Edit, Start Dictation. In Windows, press the Windows key and H. Depending on your device and settings, Apple or Microsoft may process dictation on its own servers. To check, turn on Airplane Mode and dictate: if it still works, your words stay on the device.

Part Two: The OnTrial Notebook

Find your way around

Every page has the same frame: a colored band across the top, the tabs down the right edge, and the page number and section at the bottom left. The band's color tells you where you are: navy for Set Up, teal for Build the Case, plum for In Court, and amber for Live and Finish.

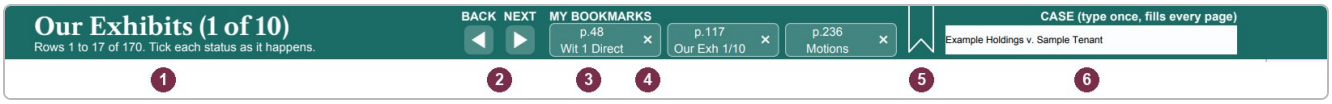


Figure 1. The header band at the top of every page.

1. The page title, and a one-line note on what the page is for.
2. BACK and NEXT turn the page.
3. My Bookmarks: three slots. Tap a slot to go to that page.
4. The × at the right end of a filled slot removes that bookmark.
5. The ribbon: tap it to bookmark the page you are on.
6. The CASE box: type the case name once and it fills every page.

The tabs. The twelve tabs on the right read Home, Guide, Prep, Proof, Wits (witnesses), Depo (depositions), Exh (exhibits), Exam, Jury, Log, Close (closing) and Notes. Each jumps to the first page of its section, and the tab you are in stands out. Home opens the title page, Guide the User Guide, and Notes the first Notes page; from Prep to Close, each tab opens on an index page of big buttons to the pages in that section, each showing its page number.

Bookmarks. Tap the ribbon 5 at the top right to bookmark the page you are on. The page number and a short name go into the first empty slot 3. From any page, tap a slot to go straight to that page. To remove a bookmark, tap the × 4 at the right end of its slot, or go to the page and tap the ribbon again. A fourth bookmark replaces the oldest. In Acrobat the ribbon fills in burgundy on a bookmarked page; PDF Viewer cannot color it, but the slots work the same way.

Start Here. The Start Here page (on the Home tab) lists every section with its page number. Tap a row to go there. It also holds the key dates and courtroom logistics, so the essentials are one tap from the title page.

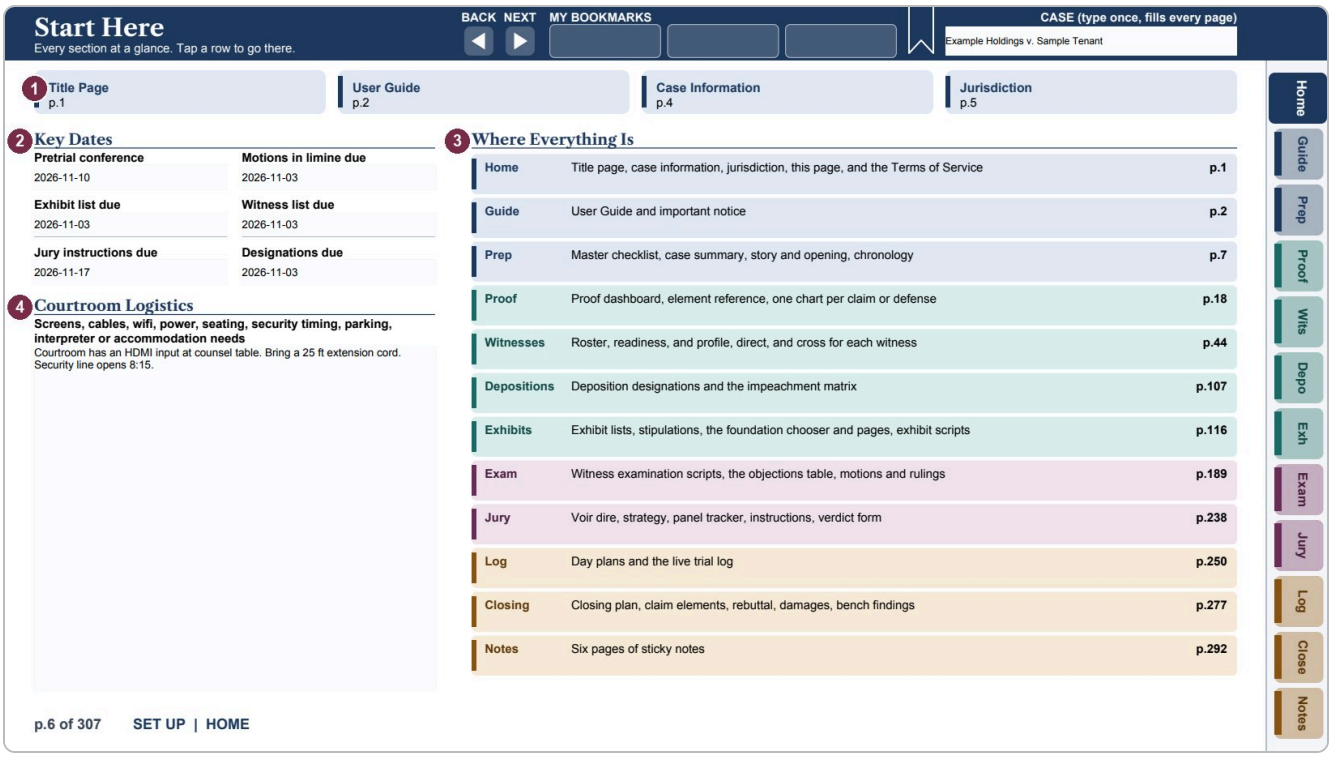


Figure 2. Start Here: every section at a glance.

1. Buttons to the title page, User Guide, Case Information and Jurisdiction.
2. Key Dates: the same boxes as on the Jurisdiction page, so type them in either place.
3. Where Everything Is: tap a row to go to that section.
4. Courtroom Logistics: screens, cables, wifi, parking, interpreters.

The page list. Your PDF app's bookmarks or outline panel lists every page, numbered, by section. It is the quickest way to reach a page you know by name.

Home: title page, case information and jurisdiction

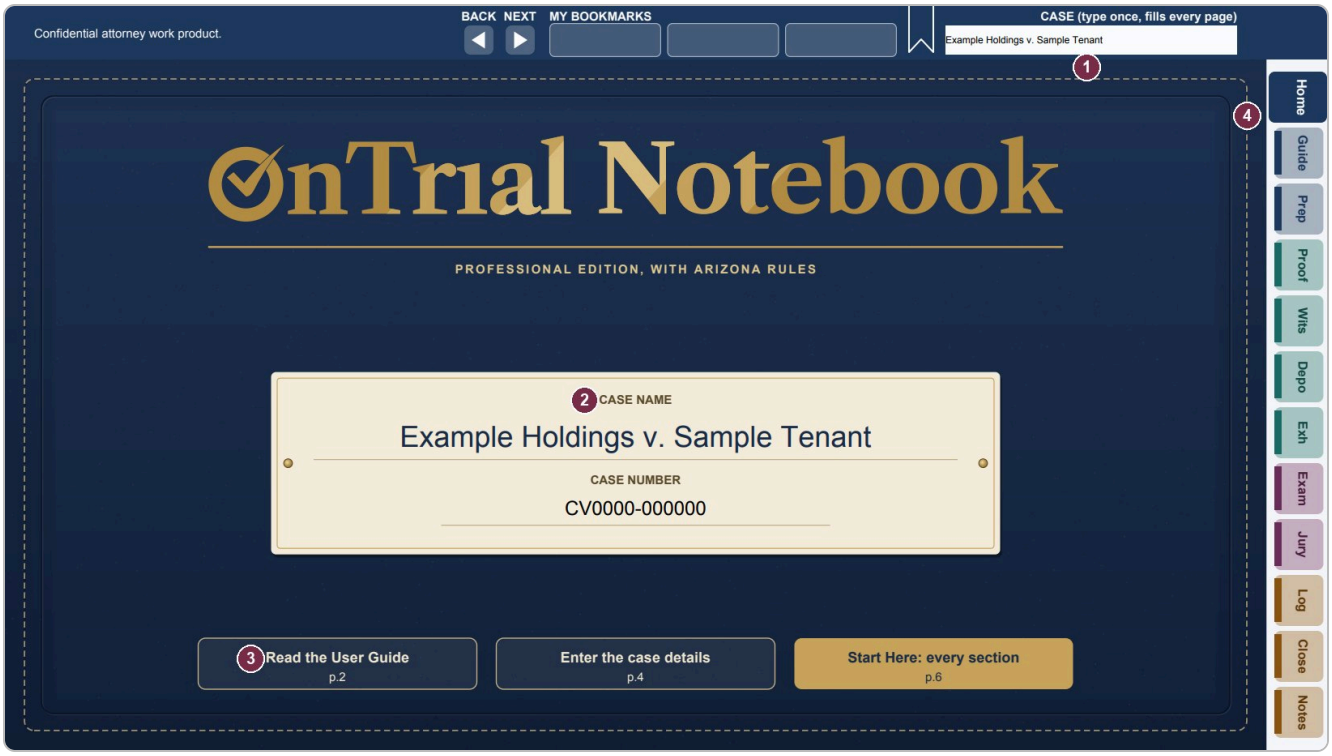


Figure 3. The title page.

1. The CASE box fills this label plate and every page.
2. The case name and number on the label plate. Tap to type here too.
3. Buttons to the User Guide, Case Information, and Start Here.
4. The tabs. Home always brings you back to this page.

Case Information holds the client, court, judge and counsel details. Fill it in at the start, along with the Jurisdiction page; the case name and number fill the title page.

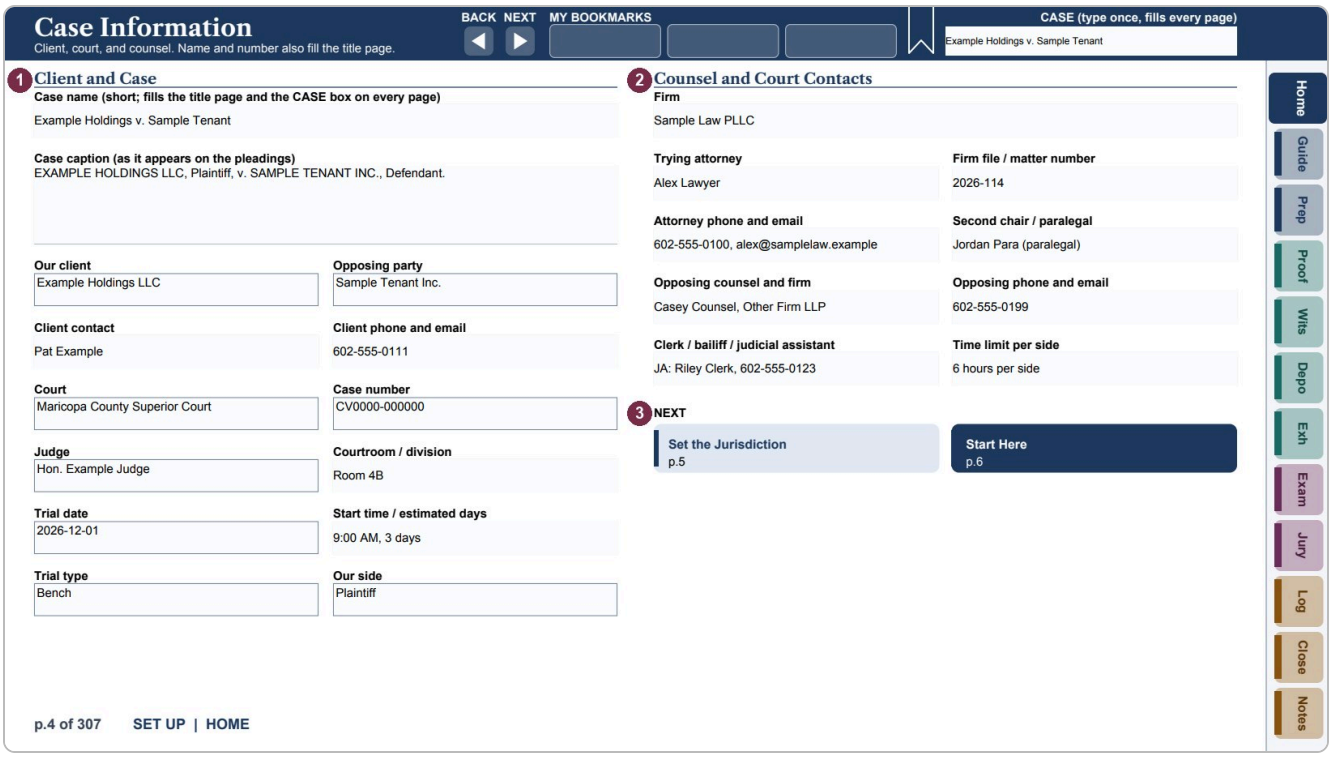


Figure 4. Case Information.

1. Client and case: name, caption, parties, court, judge, trial date and type.
2. Counsel and court contacts: your team, opposing counsel, court staff, time limits.
3. NEXT: buttons to the Jurisdiction page and Start Here.

Jurisdiction. Wherever a page recites a rule, it prints the federal cite and then a blank for your state's rule. The Jurisdiction page is where you record your state's evidence code, civil rules, pretrial order rule, local rules, the judge's standing orders, the strike rule, and the scheduling-order dates. In a Professional edition with state rules, this page and every "Your state" blank are already filled in with that state's rules; check them against the current rules before you rely on them, and type over any line to change it.

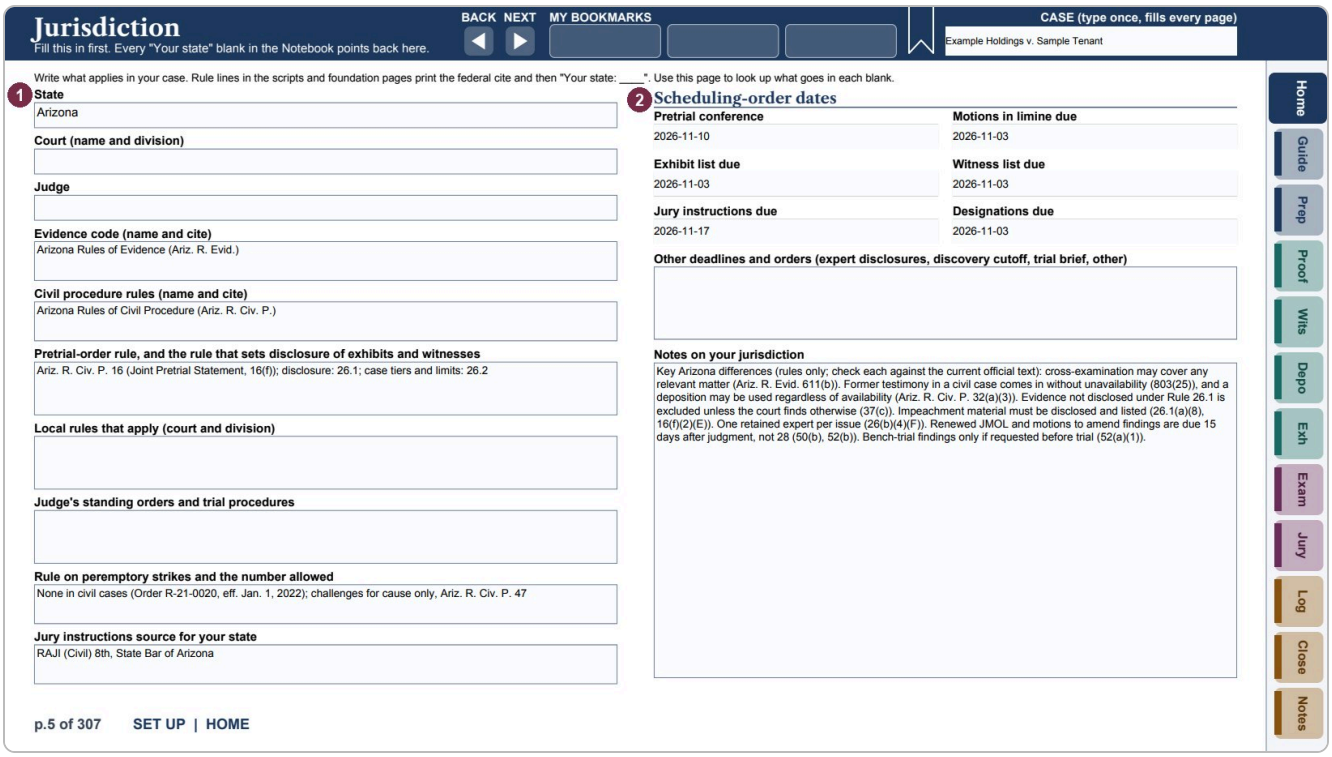


Figure 5. Jurisdiction, in a Professional edition with Arizona rules.

1. Your state's codes and rules.
2. Scheduling-order dates. These also appear on Start Here.

> **"Check your state" questions** appear on many scripts and foundation pages. They mark points that may differ where you practice. They are prompts to look the point up, not statements that your state differs.

Prep: checklists, theme and chronology

The Prep tab gets the trial organized. Five checklists run from the day trial is set to the last days before trial; then come the case summary, the opening statement, and the chronology.

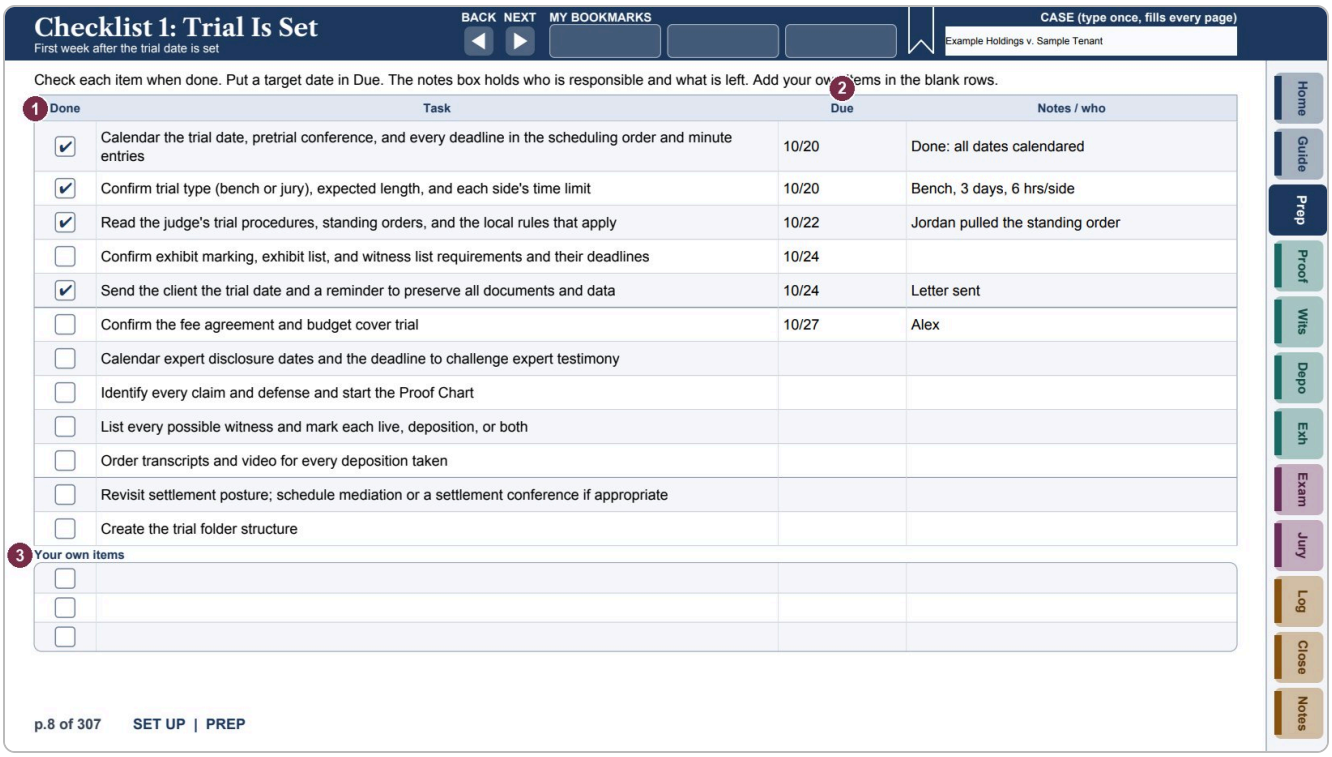


Figure 6. A checklist.

1. Done: tap anywhere in the cell to tick it.
2. Due: a target date. The Notes box holds who is responsible and what is left.
3. Your own items: blank rows for tasks of your own.

Case Summary and Theme asks for the theme in one sentence, the case in five lines, your claims and defenses, the relief, the other side's theory, what you must not lose, and settlement authority. **Story and Opening** lays out the opening: hook, parties, what happened in order, what the evidence will show, the law in a paragraph, and the ask.

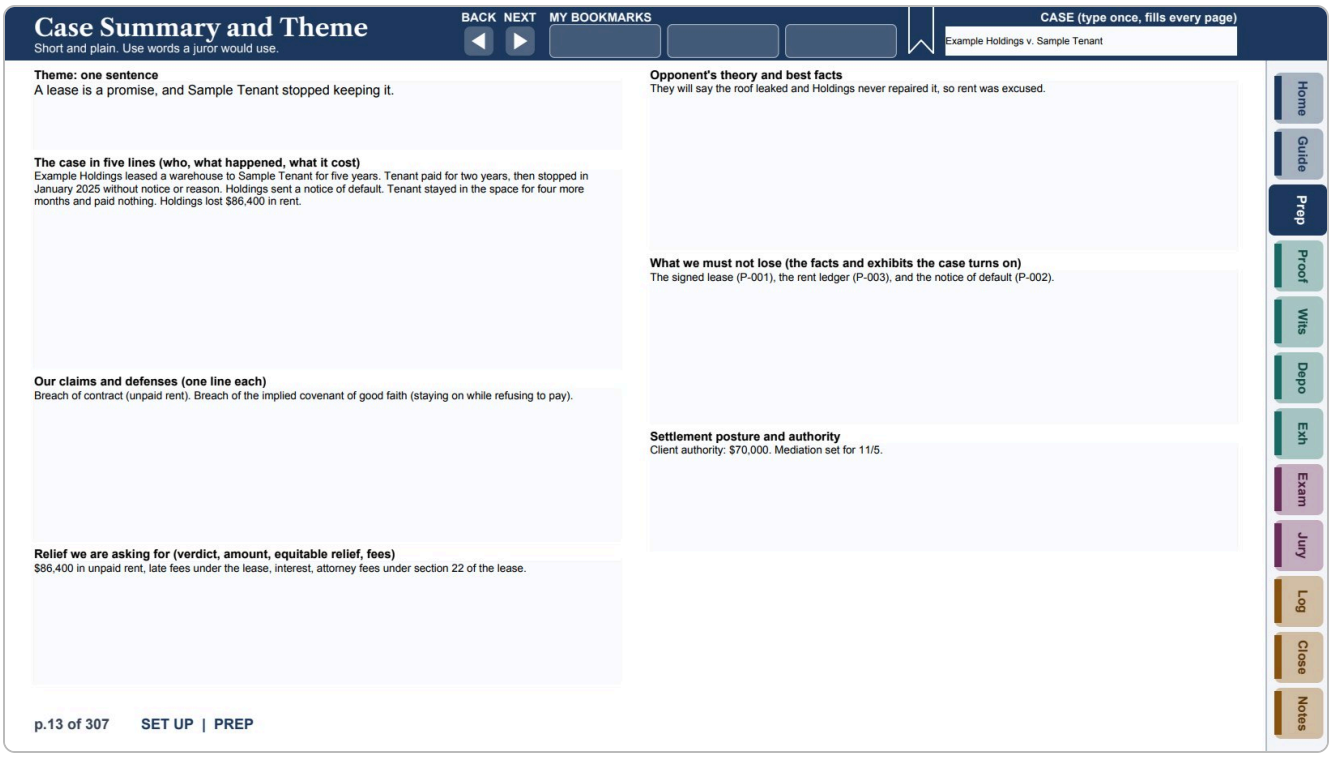


Figure 7. Case Summary and Theme.

The **Chronology** (two pages) records every dated event with its source, the witness, and its importance. Keep it in date order; it becomes the spine of your opening and closing.

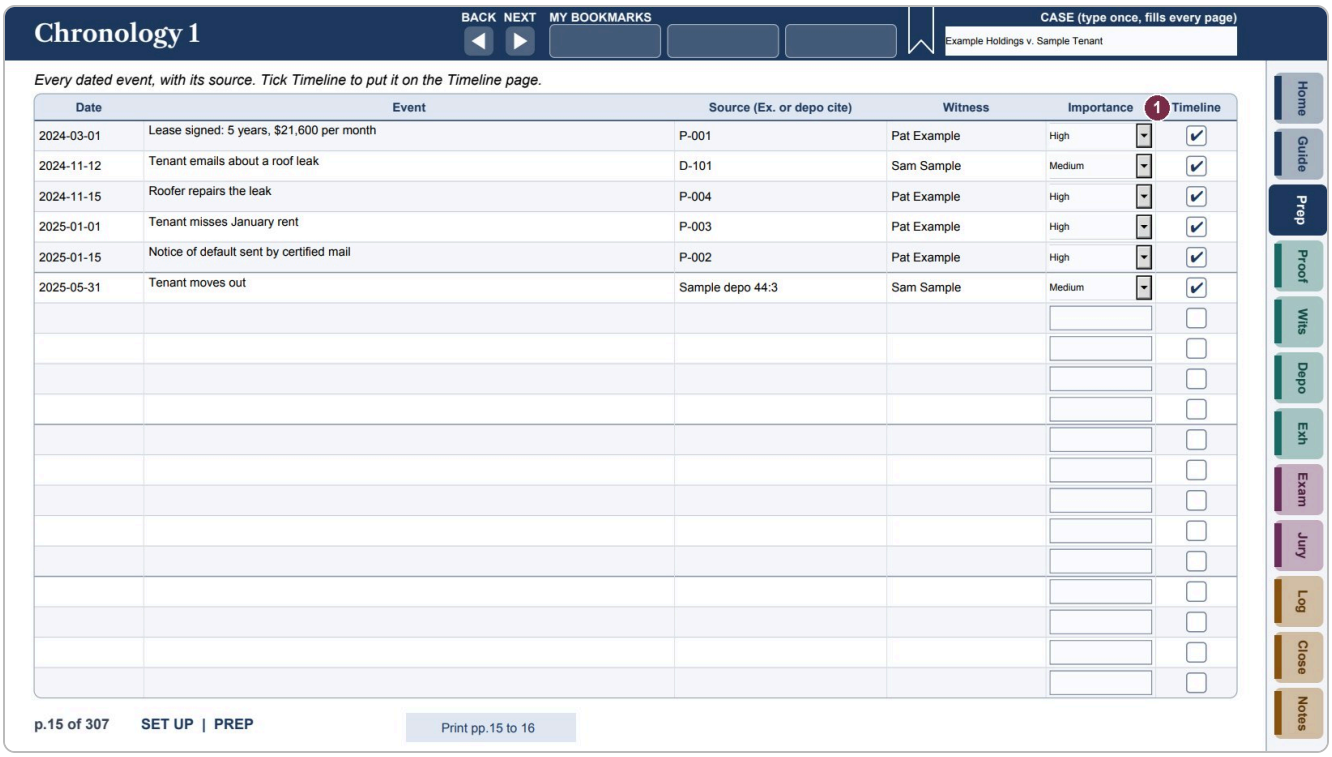


Figure 8. The Chronology.

1. Tick Timeline on the events you want on the Timeline page.

The **Timeline**, right after the Chronology, shows your key events as a picture: a line across the page with sixteen numbered boxes, alternating above and below it. Tick **Timeline** on the Chronology rows you want, then tap **Fill from Chronology**: the ticked events fill the boxes in date order, each with its date, a few words about the event, and its source. Tap it again after you change the Chronology. The boxes are evenly spaced in date order, not to scale, so the words stay readable; text shrinks to fit each box. You can also type straight into any box, which works even with JavaScript off. Fill from Chronology reads dates typed as 3/14/2025, 2025-03-14 or March 14, 2025; a date it cannot read goes last, marked "check date". **Clear Timeline** empties the boxes. The page prints, so it can serve as a draft of a timeline demonstrative.

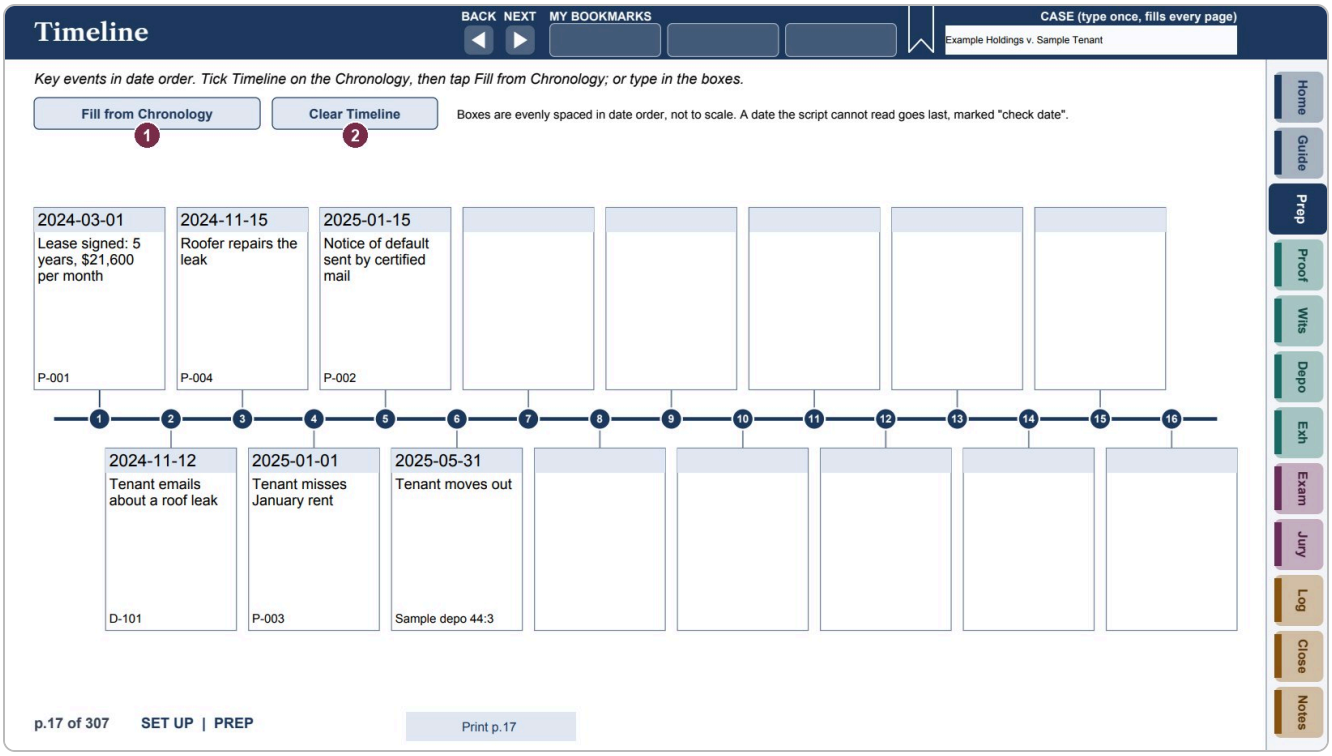


Figure 9. The Timeline.

1. Fill from Chronology places the ticked events in date order.
2. Clear Timeline empties the boxes.

Proof: the dashboard and the proof charts

The Proof tab maps every element you must prove to the witnesses and exhibits that prove it, so gaps show up early.

1. Start with a **proof chart** for each claim (in the Standard edition, also for any defense). Name the claim, the burden, and the authority or jury instruction. List the elements, one per row. For each element, write the witnesses who prove it, the exhibits, and the deposition cite, then rate it: STRONG, ADEQUATE, WEAK or GAP. Use the last column for the plan to fix a weak element.
2. Then fill in the **Proof Dashboard**: one row per claim (or defense), with the number of elements, how many are GAP or WEAK, the biggest risk, and the plan. The ratings are defined at the top of the page.

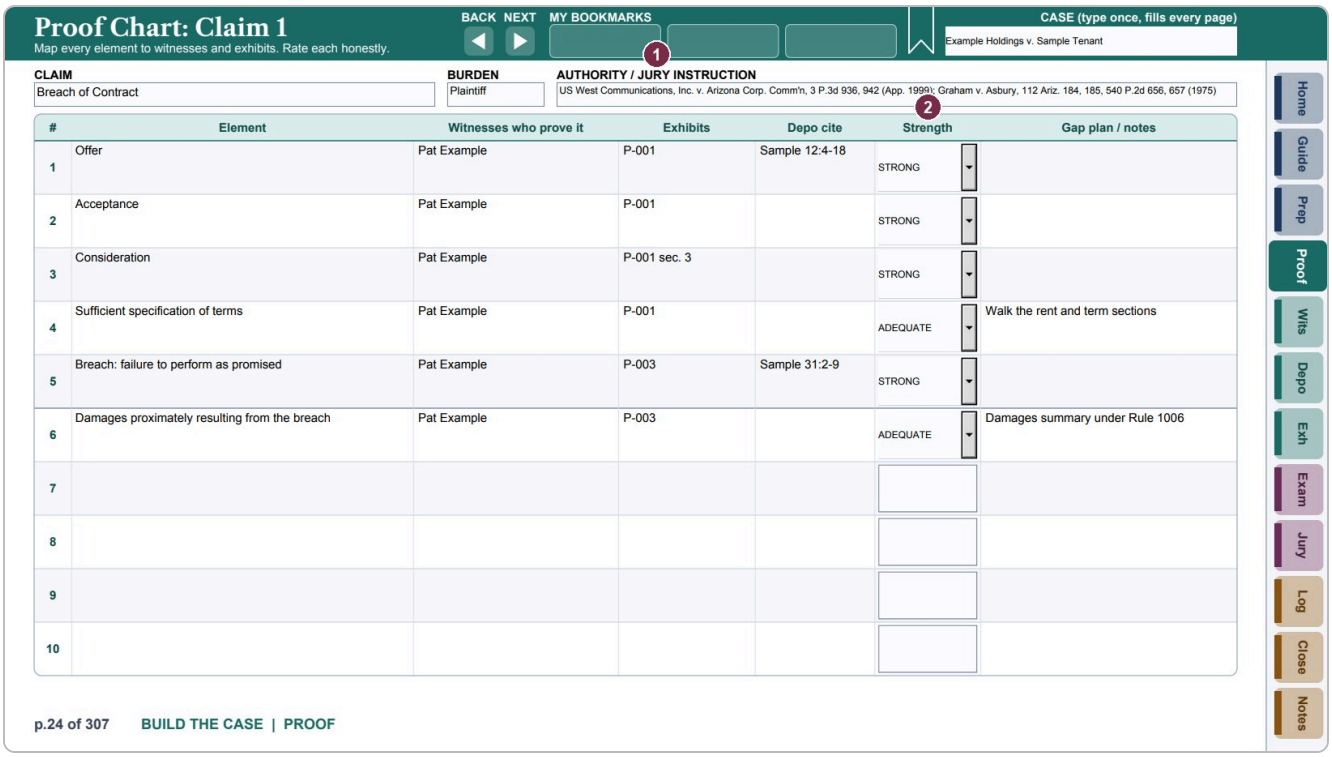


Figure 10. A proof chart.

1. The claim, burden, and authority or jury instruction.
2. Strength: pick STRONG, ADEQUATE, WEAK or GAP from the list.

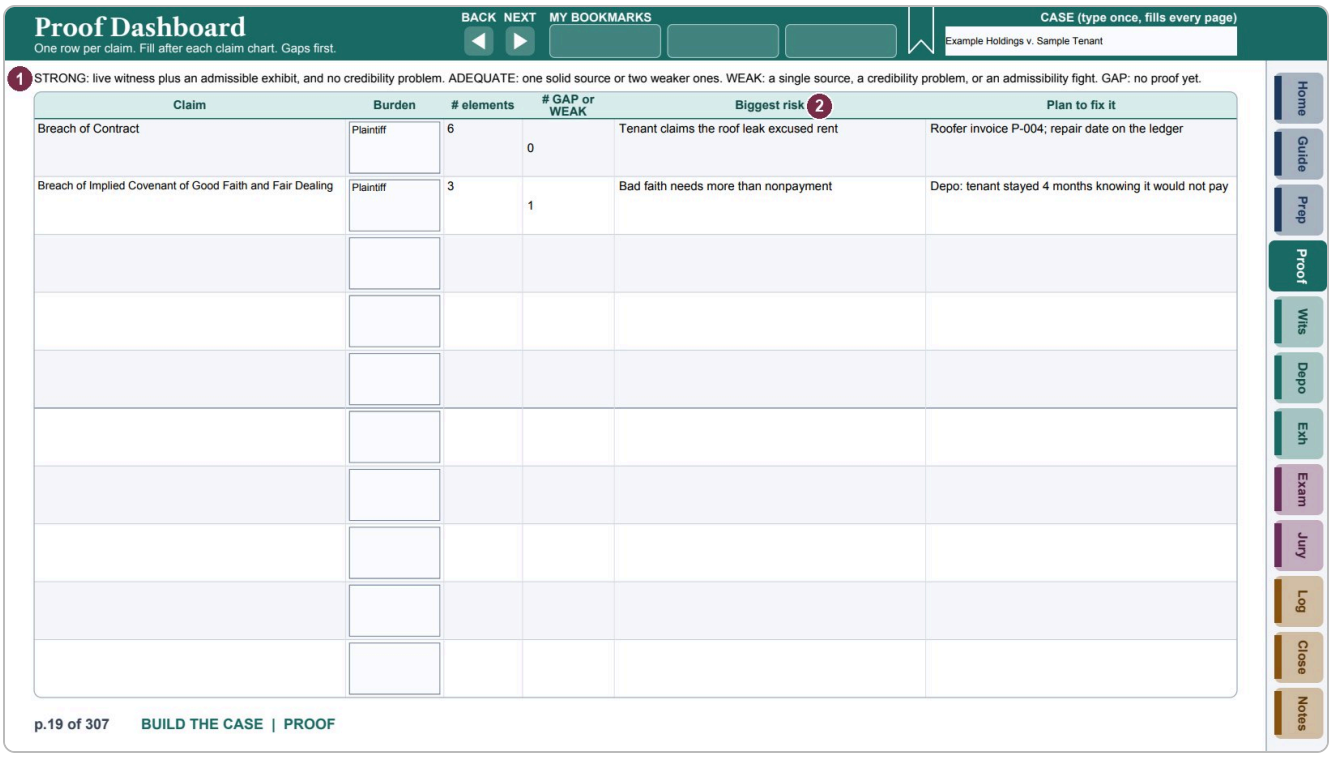


Figure 11. The Proof Dashboard.

1. What each rating means.
2. The biggest risk for each claim, and the plan to fix it.

The **Element Reference** is a worked example of element sets and authorities for common claims (Arizona examples). Use it as a model, and write the elements for your own state on your proof charts.

> **Professional edition:** a **Defenses Dashboard** and ten defense charts, laid out like the claim charts, for defenses, yours or theirs.

Witnesses: roster, readiness and outlines

The **Roster** lists every witness, ours and theirs: role, side, live or by deposition, the day and order, time for direct and cross, subpoena status, and contact. A name typed here fills that witness's three pages.

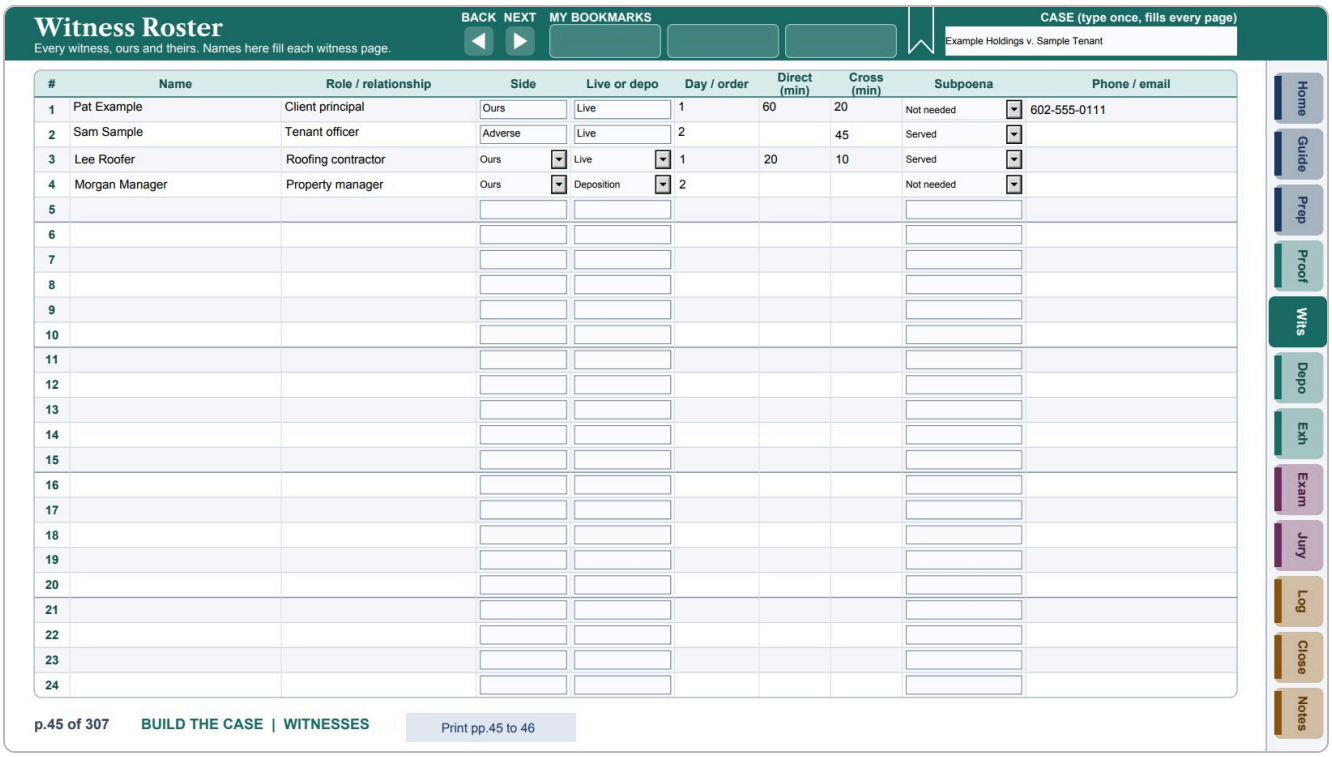


Figure 12. The Witness Roster.

The **Readiness Tracker** shows, for each witness, whether the subpoena is issued and served, the prep sessions held, exhibits reviewed, the outline done, travel set, and the day-of call made. Blanks under the next trial day are your to-do list.

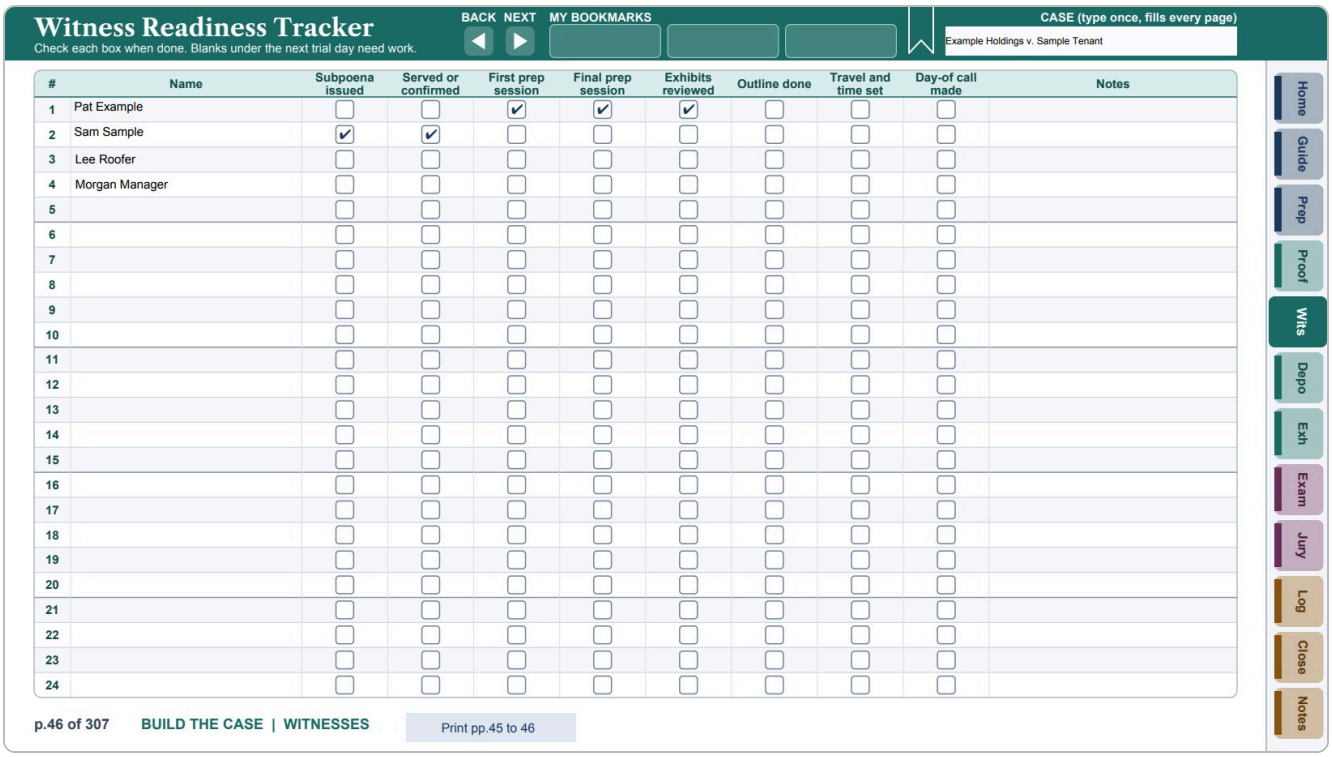


Figure 13. The Readiness Tracker.

Each witness then has three pages:

- **Profile:** why you need this witness, the exhibits they sponsor, credibility and prior statements, danger zones, prep sessions, points to save for redirect, and presenter notes.
- **Direct Exam Outline:** the goal of the examination, then topics with key questions, the exhibit, the source, and a Done box to tick as you cover each topic.
- **Cross Exam Outline:** chapters with the point to make, the leading questions, the exhibit, and where to impeach from (deposition page and line, or document), plus a Do Not Ask box.

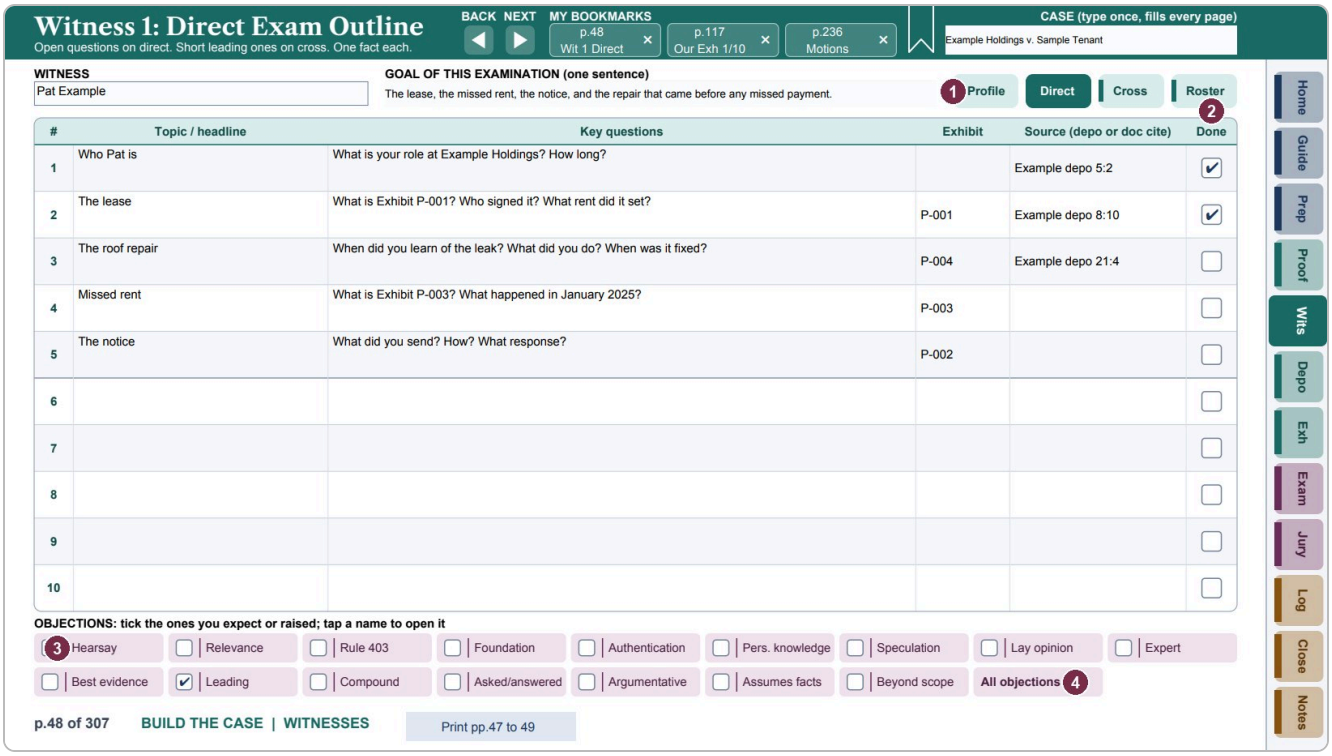


Figure 14. A Direct Exam Outline.

1. Switch between this witness's Profile, Direct and Cross pages, or go to the Roster.
2. Done: tick each topic as you cover it.
3. Objection chips: tick the box at the left of a chip to mark an objection you expect or raised.
4. Tap a chip's name to open that objection's row on the Objections page. All objections opens the whole table.

Objection chips appear at the foot of the witness outlines, deposition pages, exhibit scripts, motions and rulings pages, and the trial log. The left part of each chip is a check box; the name opens the objection on the Objections page, with its rule and a quick answer. BACK only turns to the previous page, so to get back to where you were, bookmark your page with the ribbon before you tap the chip, then tap its slot.

Depositions: designations and impeachment

Designations pages, one per deponent, record each page:line range, the subject, who designated it, any objection and the ruling, how you will use it (affirmative, counter, impeach, rebuttal), and a Read box to tick once it is read in. Record the ruling before the day you read.

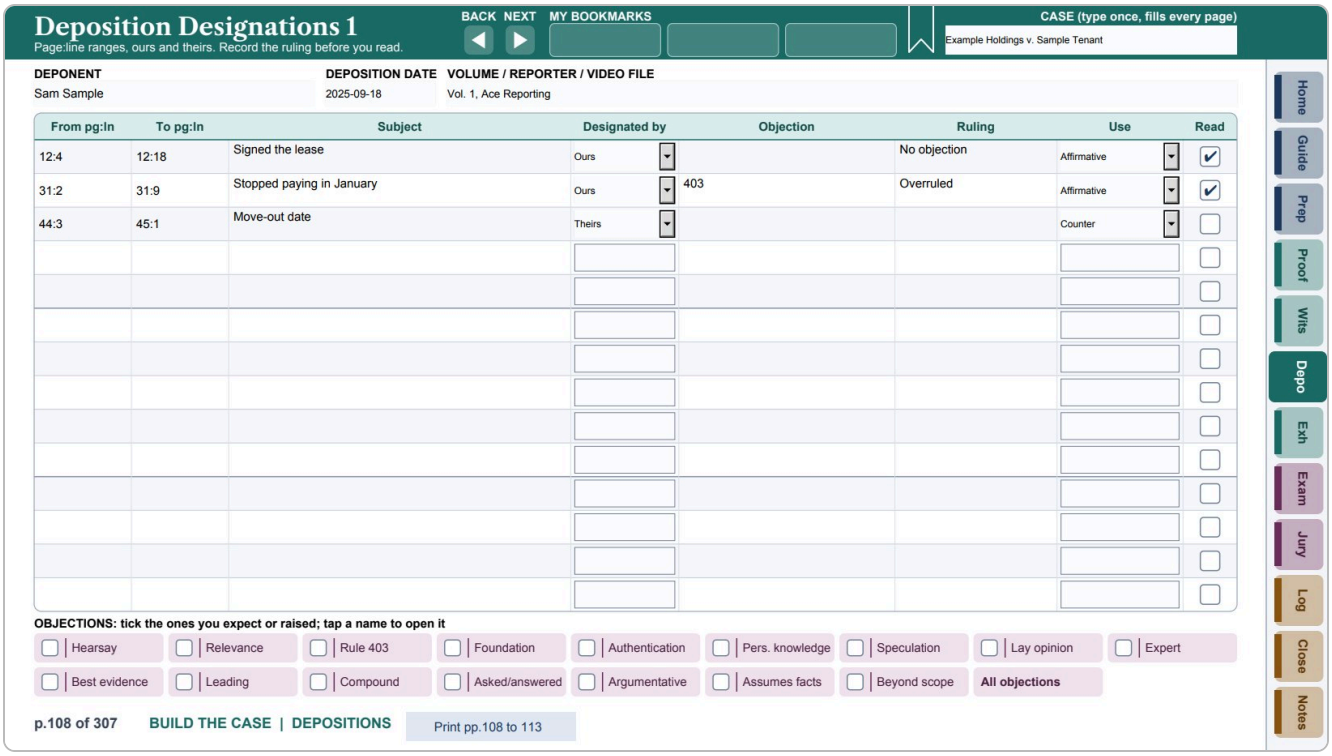


Figure 15. Deposition Designations.

The **Impeachment Matrix** lines up what a witness said at trial against the earlier statement, word for word, with the source, a Ready box, and a Used box. Commit, credit, confront, and cite page and line every time.

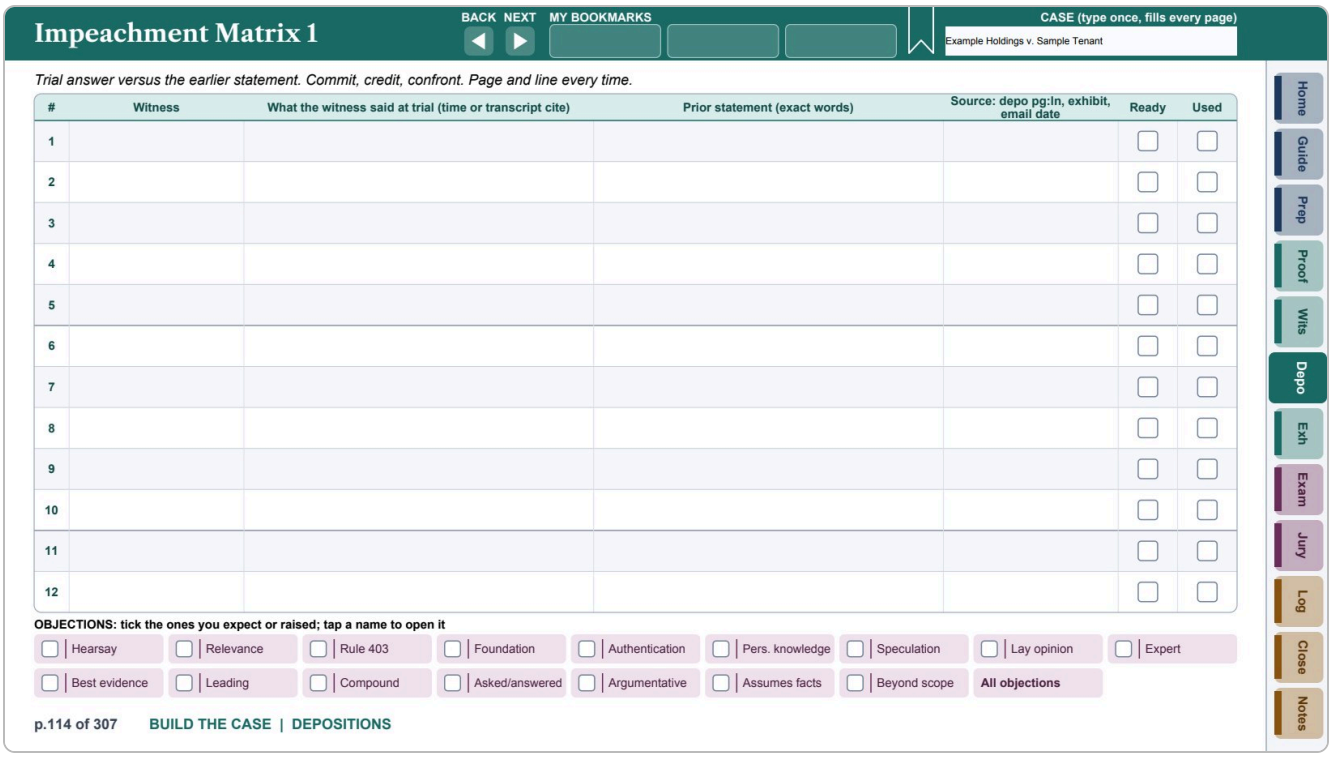


Figure 16. The Impeachment Matrix.

Exhibits: lists, status, foundations and scripts

The Exhibits tab holds your exhibit list and the adverse list, a running list of admitted exhibits, stipulations, and the foundation for every kind of evidence.

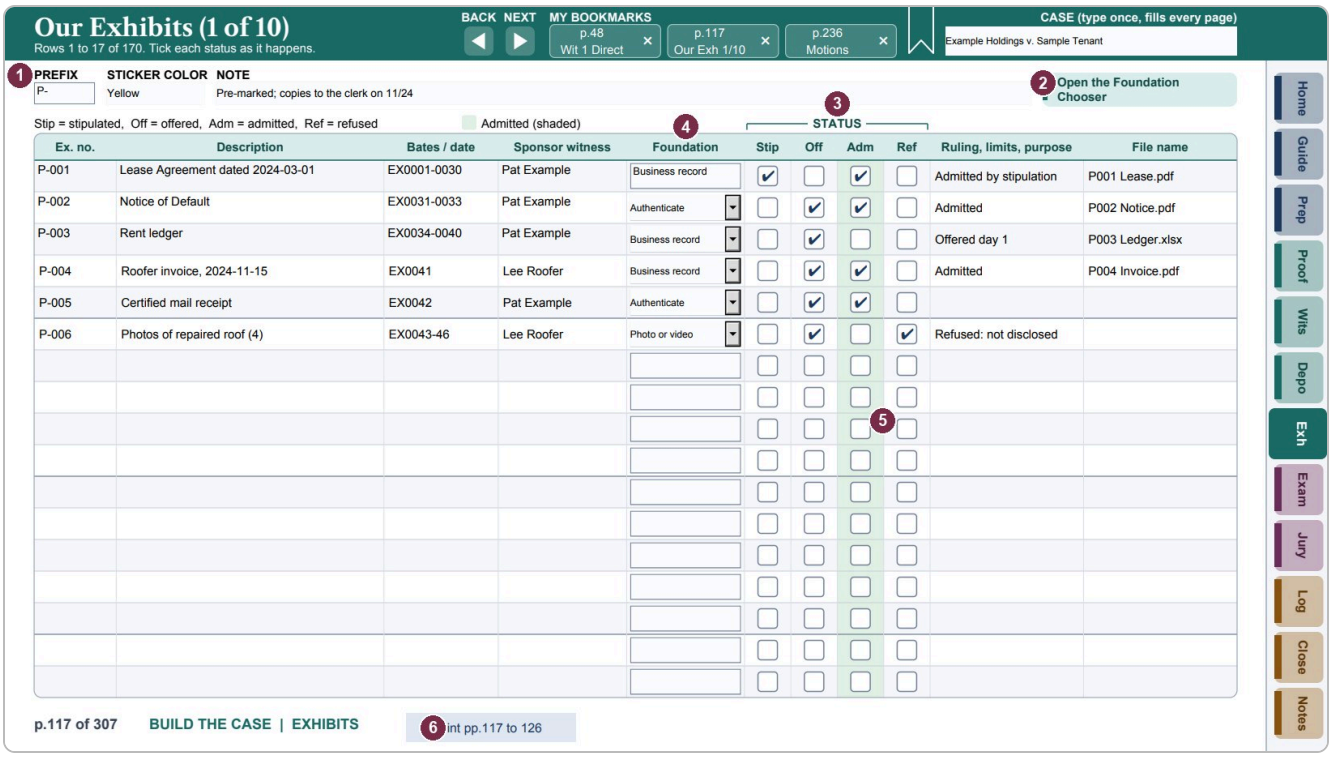


Figure 17. The exhibit list.

1. Prefix, sticker color and a note for the whole list (page 1 only).
2. Open the Foundation Chooser to find the foundation for an exhibit.
3. Status: tick Stip, Off, Adm or Ref as each happens.
4. Foundation: pick the kind of foundation from the list.
5. The Adm column is shaded so admitted exhibits stand out.
6. Professional edition: Print prints the whole list, all its pages.

1. Enter each exhibit on **Our Exhibits** or **Adverse Exhibits**: number, description, Bates number or date, sponsoring witness, and foundation. The header shows which rows the page holds (for example, rows 1 to 17 of 85).
2. At trial, tick the status as it happens: **Stip** (stipulated), **Off** (offered), **Adm** (admitted), **Ref** (refused). Note the ruling, any limits, and the purpose.
3. Open the **Admitted Exhibits** page any time to see every exhibit ticked Adm on both lists, with its number and description. It fills itself in each time you open the page; tap Refresh the lists to update it while you are on it. It is read-only: to change it, tick or untick Adm on the lists.

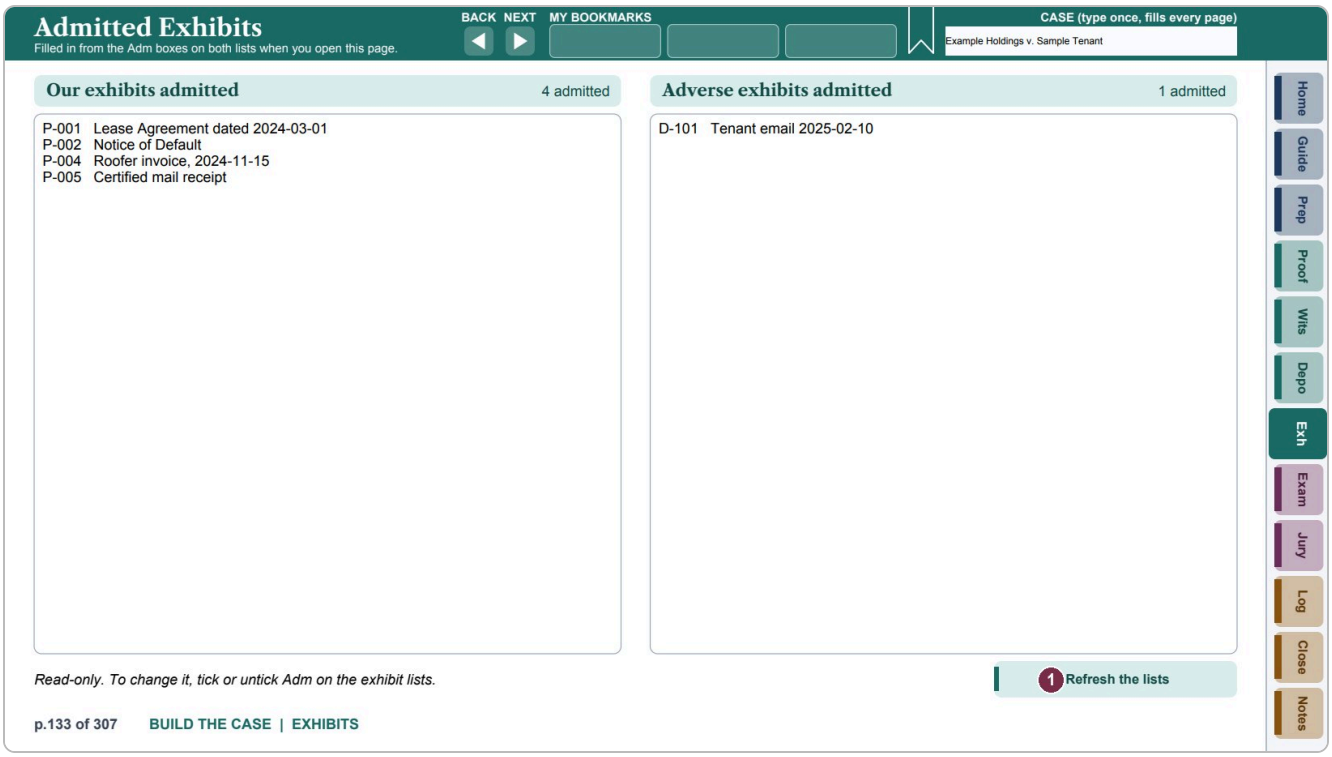


Figure 18. Admitted Exhibits.

1 Refresh the lists: update the page while you are on it.

The **Stipulations** page records every agreement with opposing counsel: the exact terms, the date, how it was made (email, signed, or on the record), and whether it is in writing and has been filed or read in.

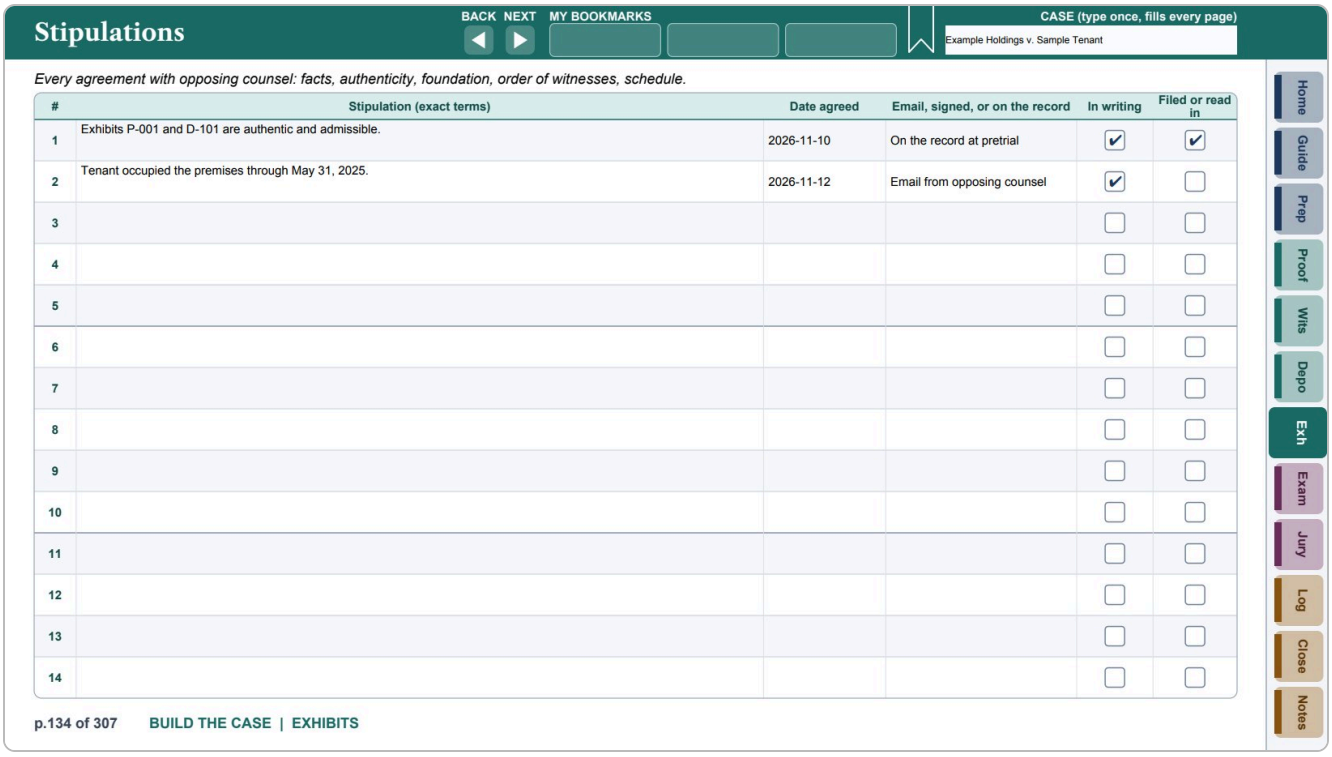


Figure 19. Stipulations.

The Foundation Chooser starts with the steps for every exhibit, every time. Below that, find what you are offering, or the problem on the stand, and tap the row to open its page: a foundation page, or, for an expert, a witness problem on the stand, hearsay, objections or stipulations, the script on the Exam tab. Each row shows the authentication rule, the hearsay route, and in the Open column the page (and script number) it opens.

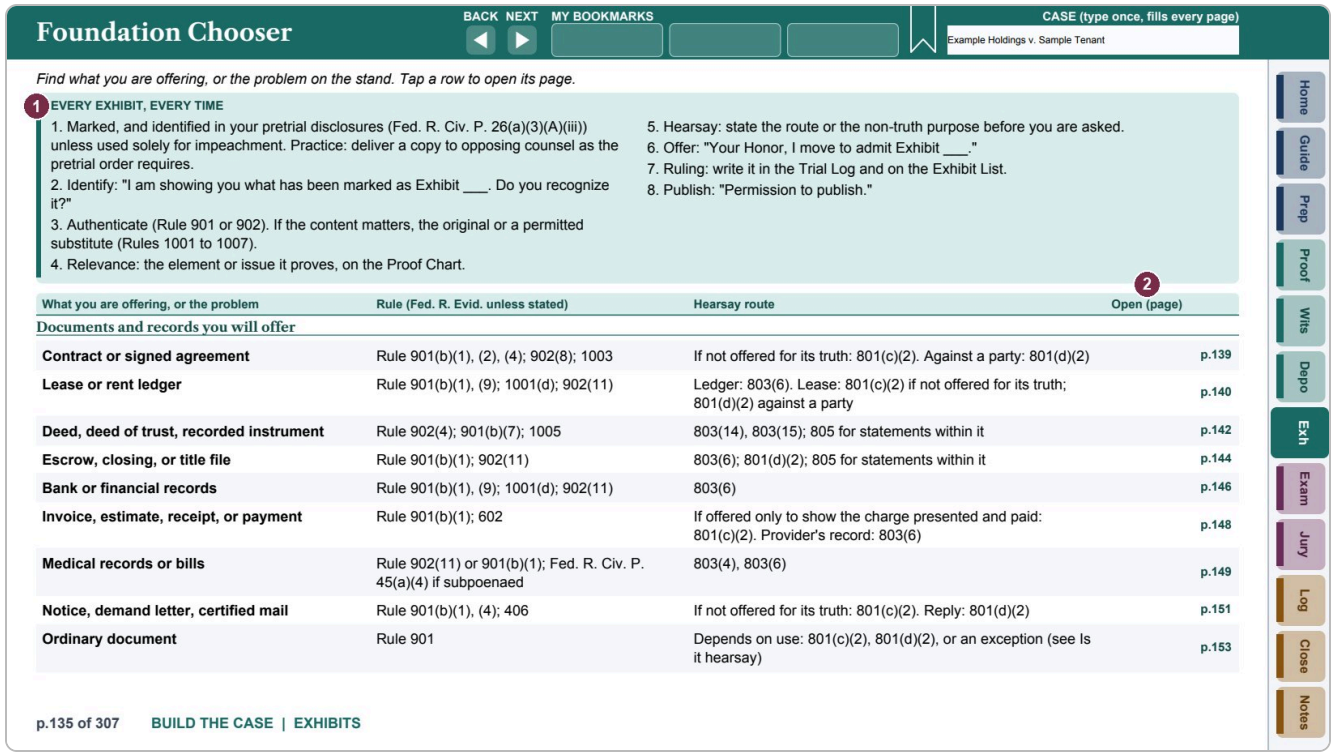


Figure 20. The Foundation Chooser.

1. Every exhibit, every time: the steps for any exhibit.
2. Tap a row to open its page: a foundation page, or a script on the Exam tab.

Each **foundation page** covers one kind of evidence (a contract, a business record, a photograph, an email, a summary, expert opinion, and many more): the authentication and hearsay rules with boxes for your state's rules, what to say in order, the objections to expect with your answers, "Check your state" questions, and your notes.

> **Mark each step as you say it.** On the foundation pages and the scripts on the Exam tab, tap a numbered step once you have said it: the step fades and a green check covers its number, so the next step stands out. Tap it again to unmark it. **Clear checks**, in the middle of the footer, clears every step on that page, ready for the next exhibit or witness. Marking a step works even with JavaScript off; Clear checks needs it.

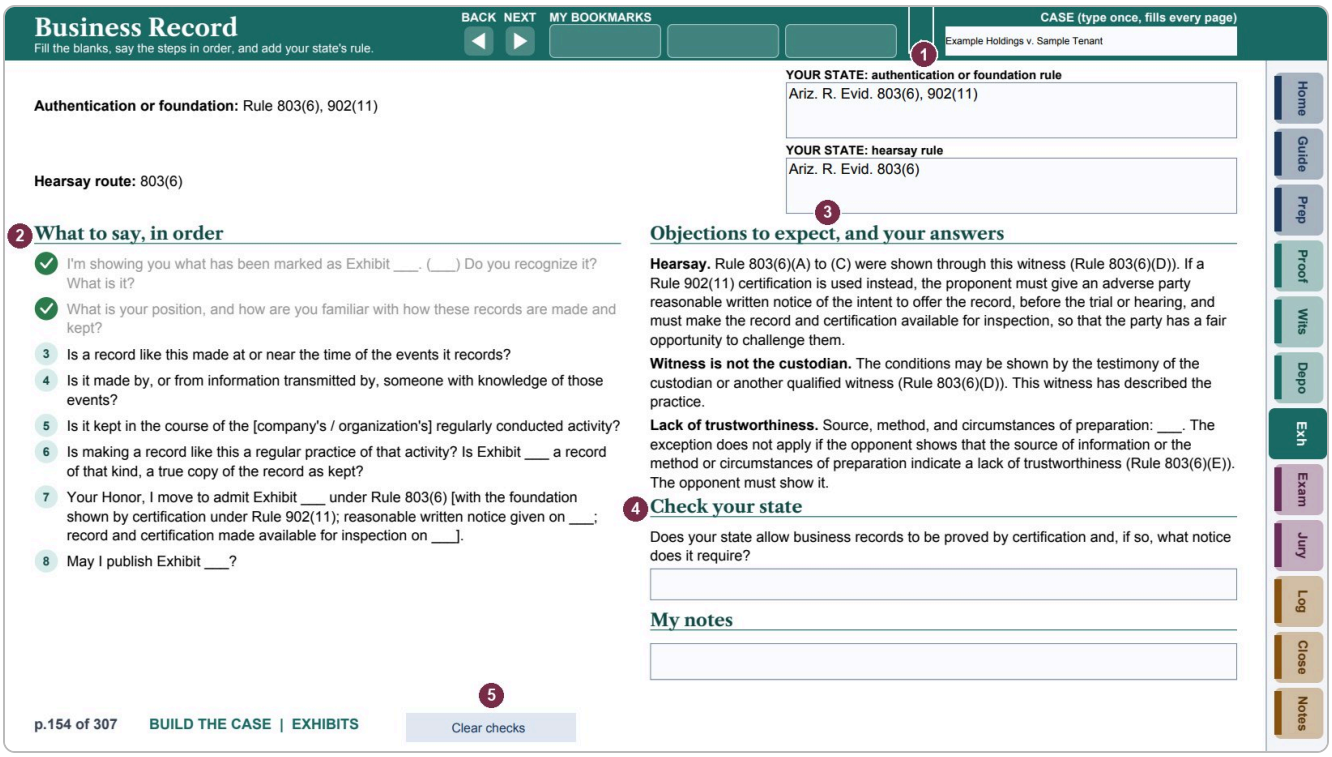


Figure 21. A foundation page.

1. Your state's rule, beside the federal cite (filled in when the edition includes your state).
2. What to say, in order. Tap a step once you have said it: it fades and gets a check (steps 1 and 2 here).
3. The objections to expect, and the answer to each.
4. Check your state: a point that may differ where you practice.
5. Clear checks clears the marked steps for the next exhibit.

Exhibit scripts are for the exhibits and testimony you must get in. The Exhibit Scripts Index lists them; tap Open page to go to one. Each script page holds the item, description, sponsoring witness, evidence type, purpose and admissibility path; then what you will say and the answer you need, with a Done box for each step; the objections you expect and your response; a fallback if an objection is sustained; and the result and ruling.

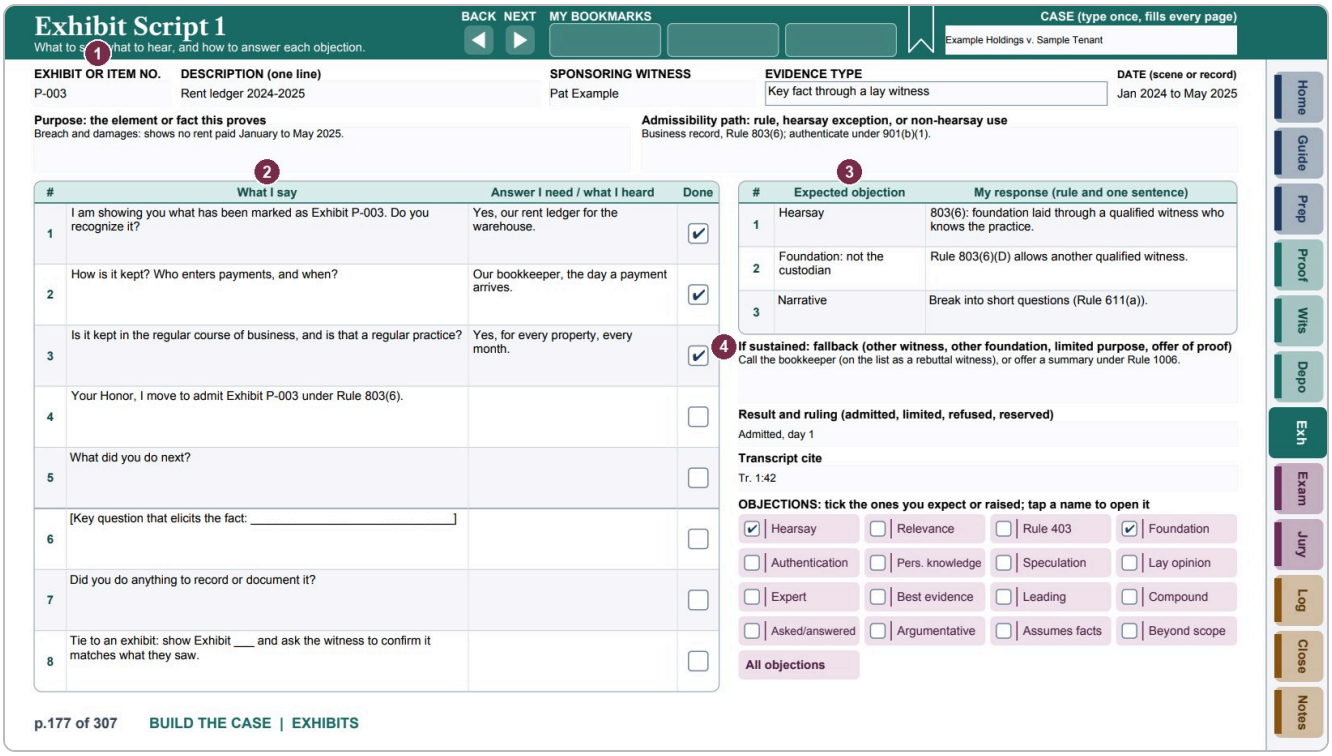


Figure 22. An exhibit script.

1. The item, witness, evidence type and date.
2. What I say, and the answer I need. Tick Done as you go.
3. Expected objections and your one-sentence response.
4. If sustained: your fallback.

Exam: scripts, objections, motions and rulings

The Exam tab opens on an index of scripts for examining witnesses, grouped as refreshing recollection, impeachment, experts, then objections, hearsay, stipulations, and bench or jury trial, and other scripts (authentication, business records, photographs, emails, offering an exhibit, depositions at trial, lay opinion, party statements, summaries, public records, offers of proof, and the motion at the close of the opponent's evidence).

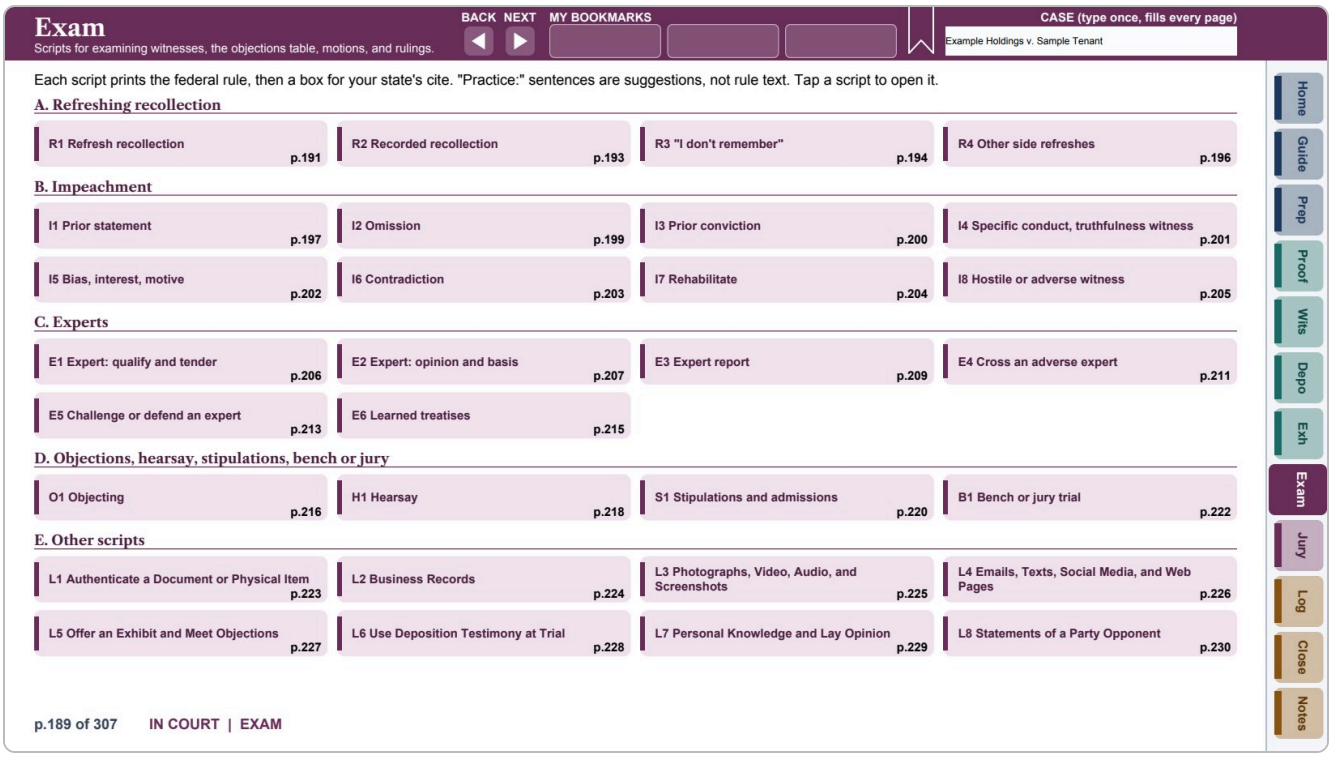


Figure 23. The Exam index.

Each **script** prints the rule, a box for your state's cite, and the steps in order. Steps to take before trial are listed first. In the steps, the words you say aloud to the court or the witness are set apart in color with a bar beside them, so you can find them at a glance. A sentence that starts "Practice:" is a suggestion about practice, not rule text. Tap each numbered step once you have said it, and use Clear checks to start again (see Mark each step).

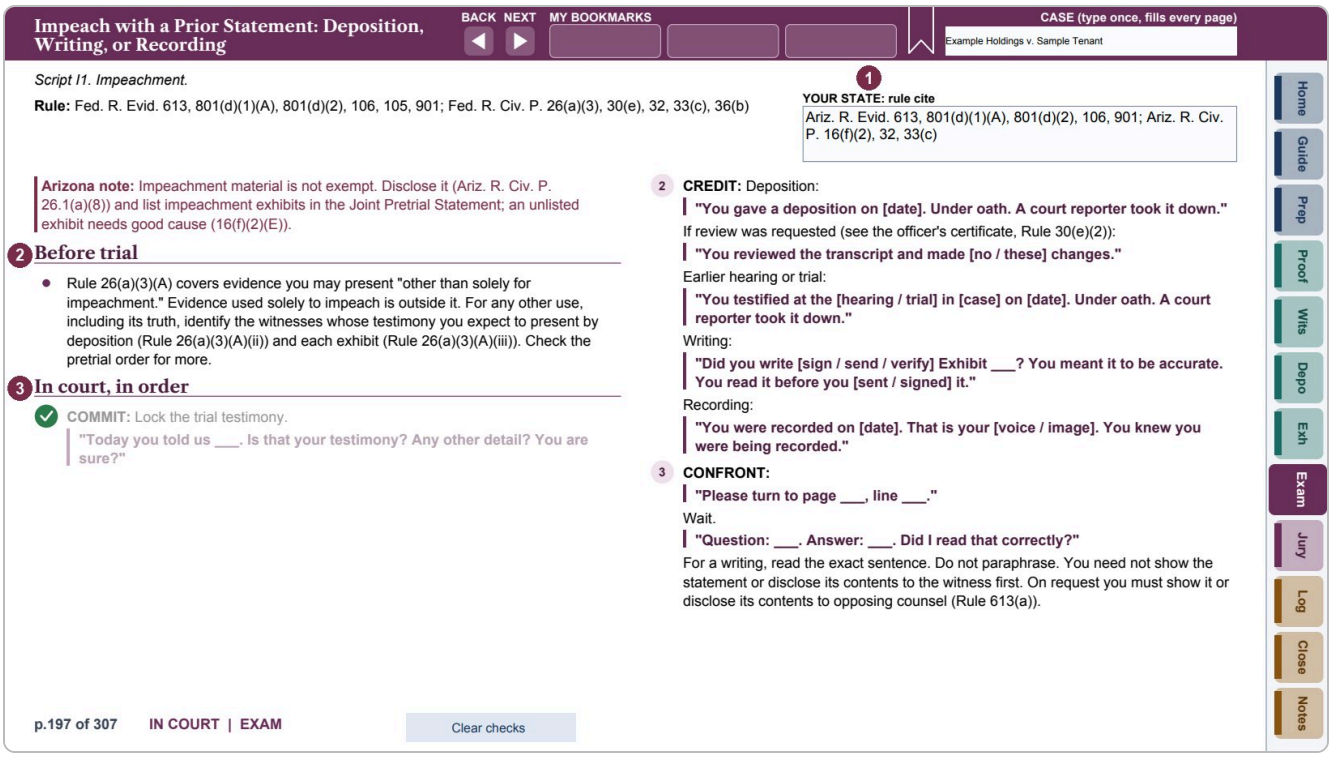


Figure 24. A script page.

1. Your state's rule cite.
2. Before trial: what to do ahead of time.
3. In court, in order: numbered steps, with the words to say set apart.

The **Objections** page lists the common objections in rule order, grouped by subject (General, Relevance, Privileges, Witnesses, Questioning, Opinions, Hearsay, Authentication, Contents, and Civil Rules). Each row gives the rule, the objection, a quick answer, a (i) note with the rule text and practice notes, and a box for your notes. Tap a group name to zoom to that group.

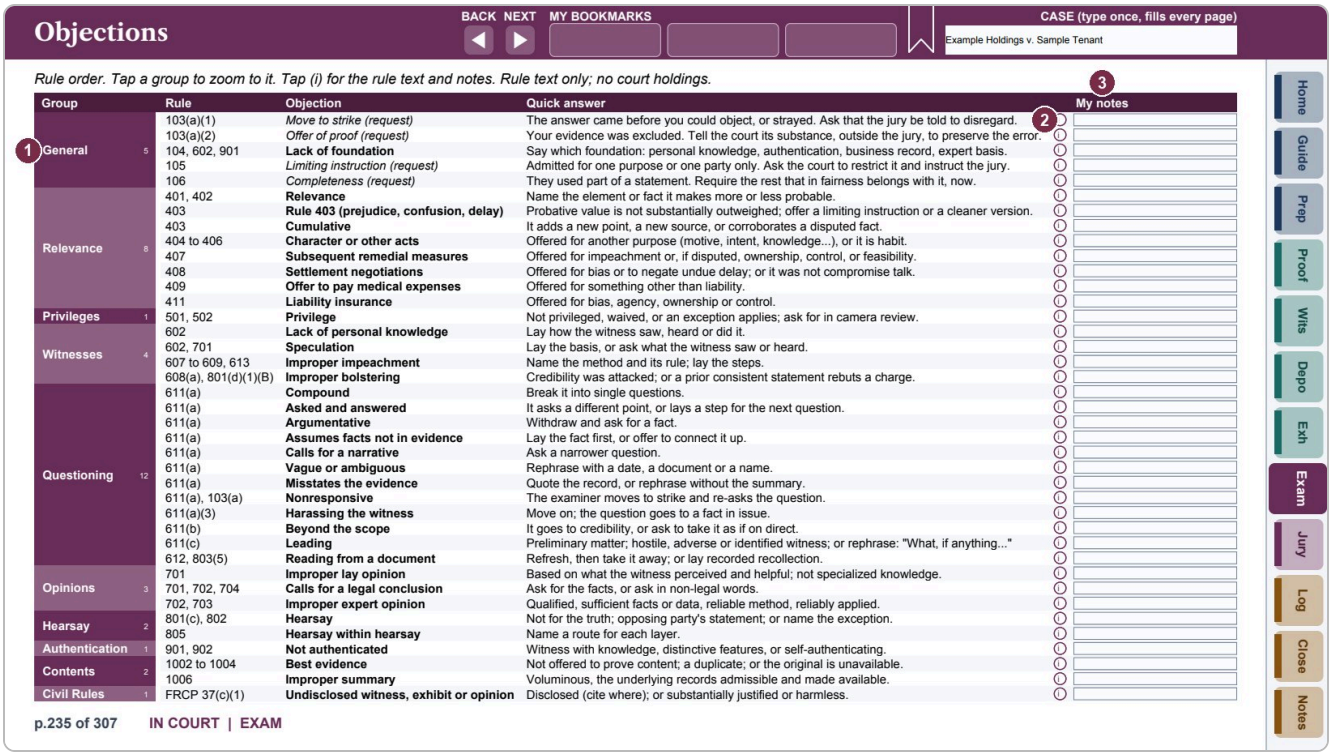


Figure 25. The Objections page.

1. Tap a group to zoom to it.
2. Tap (i) for the rule text and notes.
3. My notes: your own answer for each objection.

Motions in Limine and Rulings records every pretrial ruling and the limits it puts on you: the motion, who filed it, the ruling, the date, the terms, the witnesses or exhibits affected, and a Comply box to tick once you have briefed the witness or team. **Rulings During Trial** records rulings from the bench, sidebars and instructions to counsel, with the time and transcript cite.

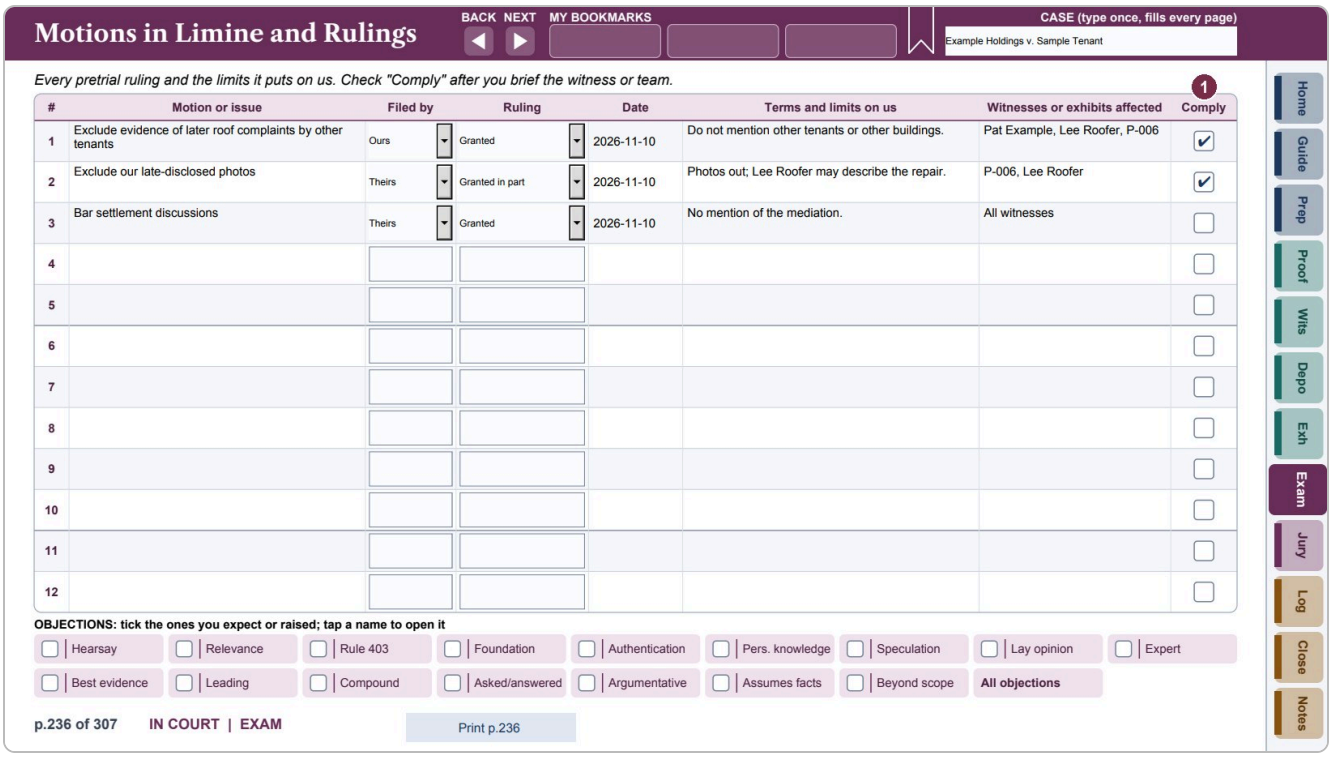


Figure 26. Motions in Limine and Rulings.

1 Comply: tick once the witnesses or team know the limits.

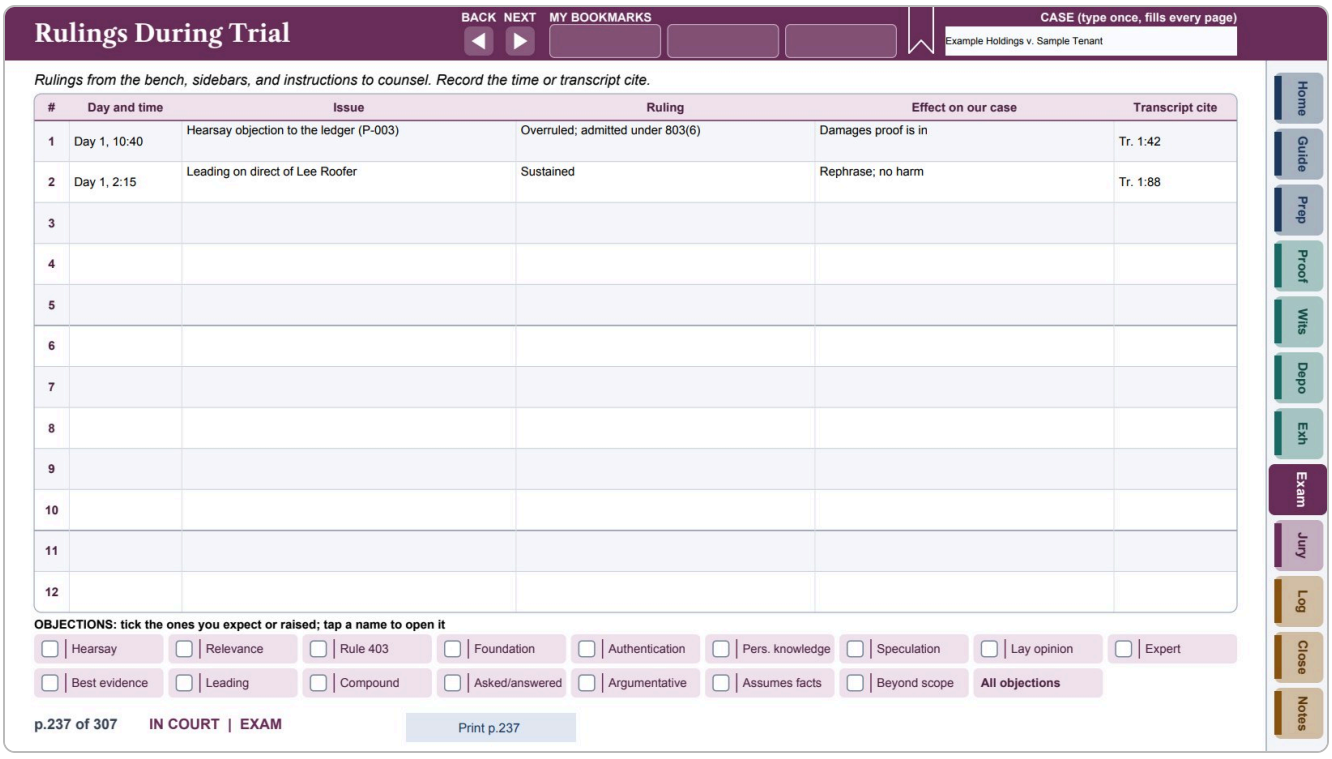


Figure 27. Rulings During Trial.

Jury: voir dire, panel, instructions and verdict

The **Voir Dire Question Bank** groups questions by subject; tick the ones to ask and write the follow-ups. The **Jury Selection Strategy** page sets out your ideal juror, your most dangerous juror, the questions that reveal each, themes to plant, cause challenges, strikes allowed and used, and any record to make.

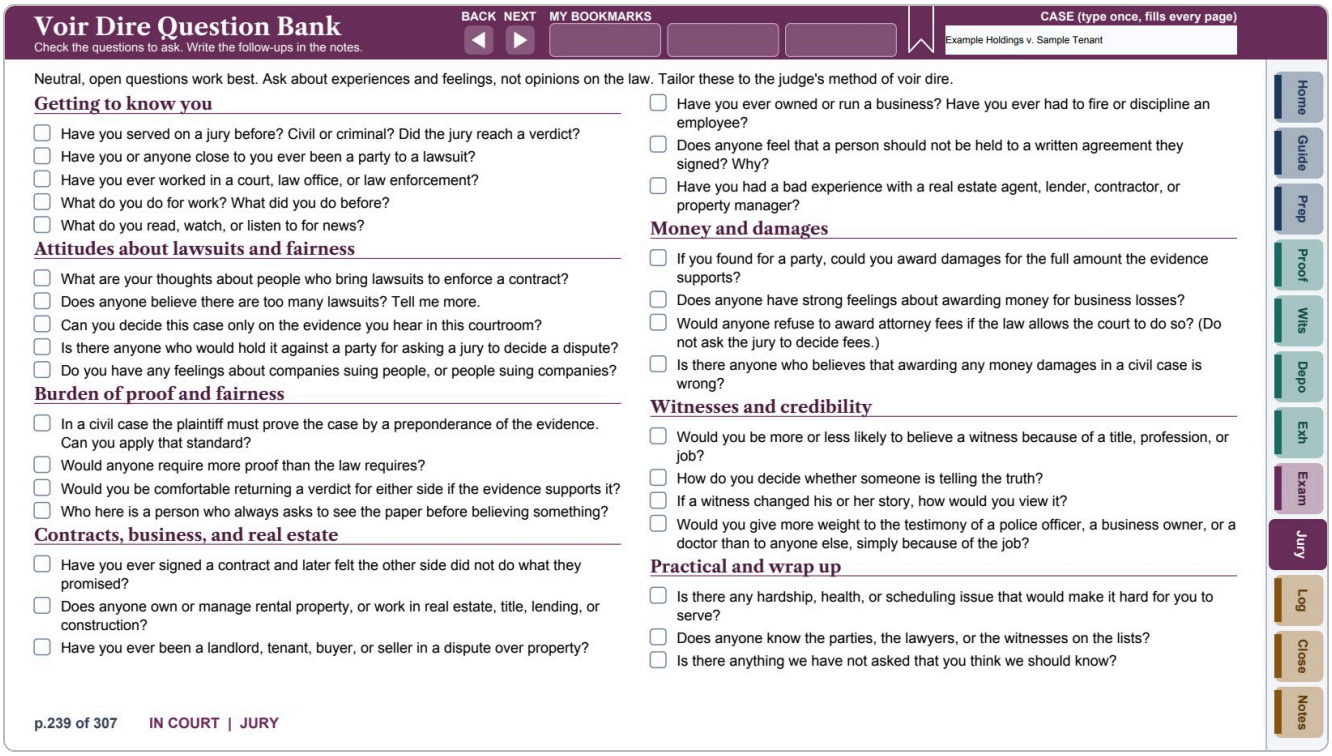


Figure 28. The Voir Dire Question Bank.

The **Panel Tracker** pages record each panel member: number, name, occupation, household, answers and body language, a rating from -2 to +2, a cause box, and the result (seated, for cause, our strike, their strike, excused).

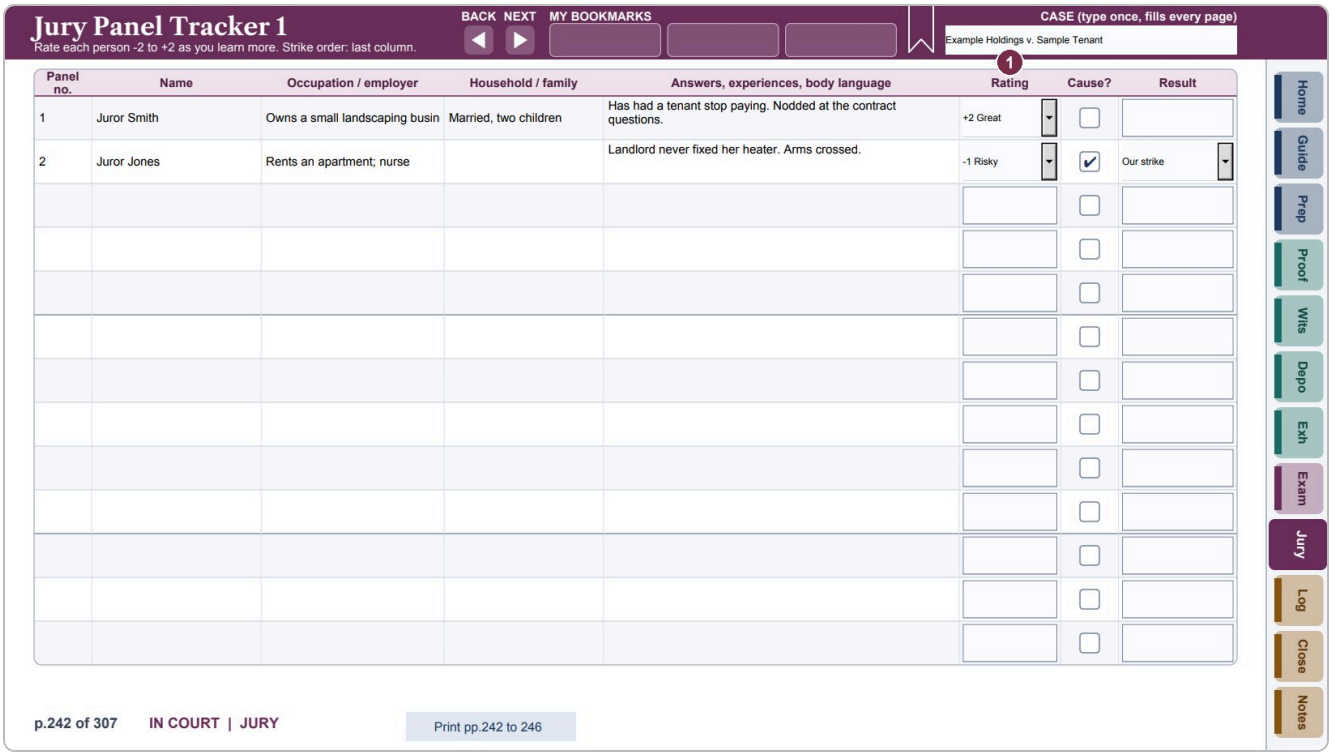


Figure 29. The Panel Tracker.

1 Rating: from +2 (great) to -2 (dangerous), updated as you learn more.

The **Instructions** pages track every jury instruction (proposed, agreed, disputed, given, refused) with its source and your position, and mark the ones to quote in closing. **Verdict Form Notes** walks the verdict form question by question: the answer you want, the evidence that supports it, and the risk. It is the road map for your closing.

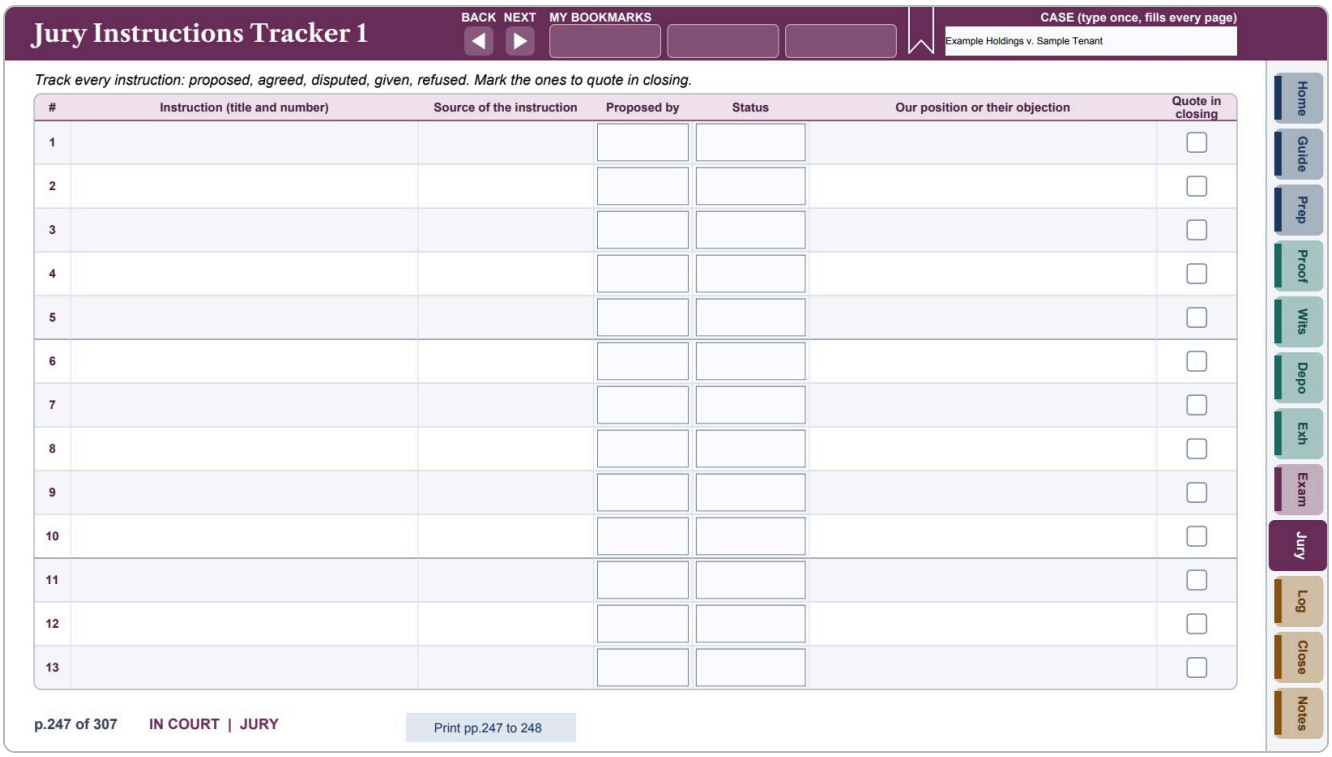


Figure 30. The Instructions tracker.

Log: day plans and the trial log

Each **Day Plan** is filled the night before (witnesses and order, exhibits to offer, motions and issues to raise, the judge's instructions) and finished at the end of the day (what you proved, problems and rulings, fixes for tomorrow, and notes for staff).

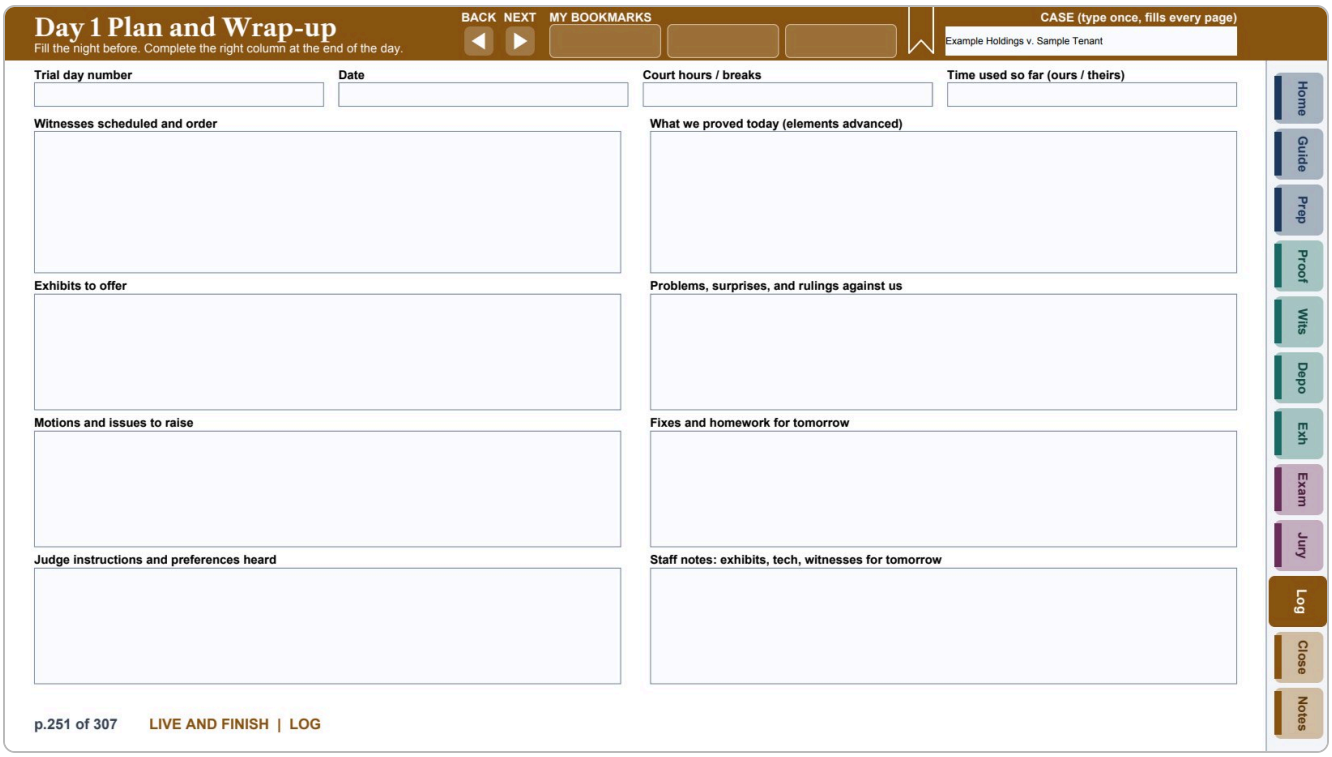


Figure 31. A Day Plan.

The **Trial Log** is for capturing the trial in real time: the time, the type of entry (testimony, admission, ruling, objection, exhibit, juror reaction, judge comment, demeanor), the witness, what happened, the exhibit or element, and the transcript cite. Tick the star on anything you want in closing. Keep entries short; the transcript comes later.

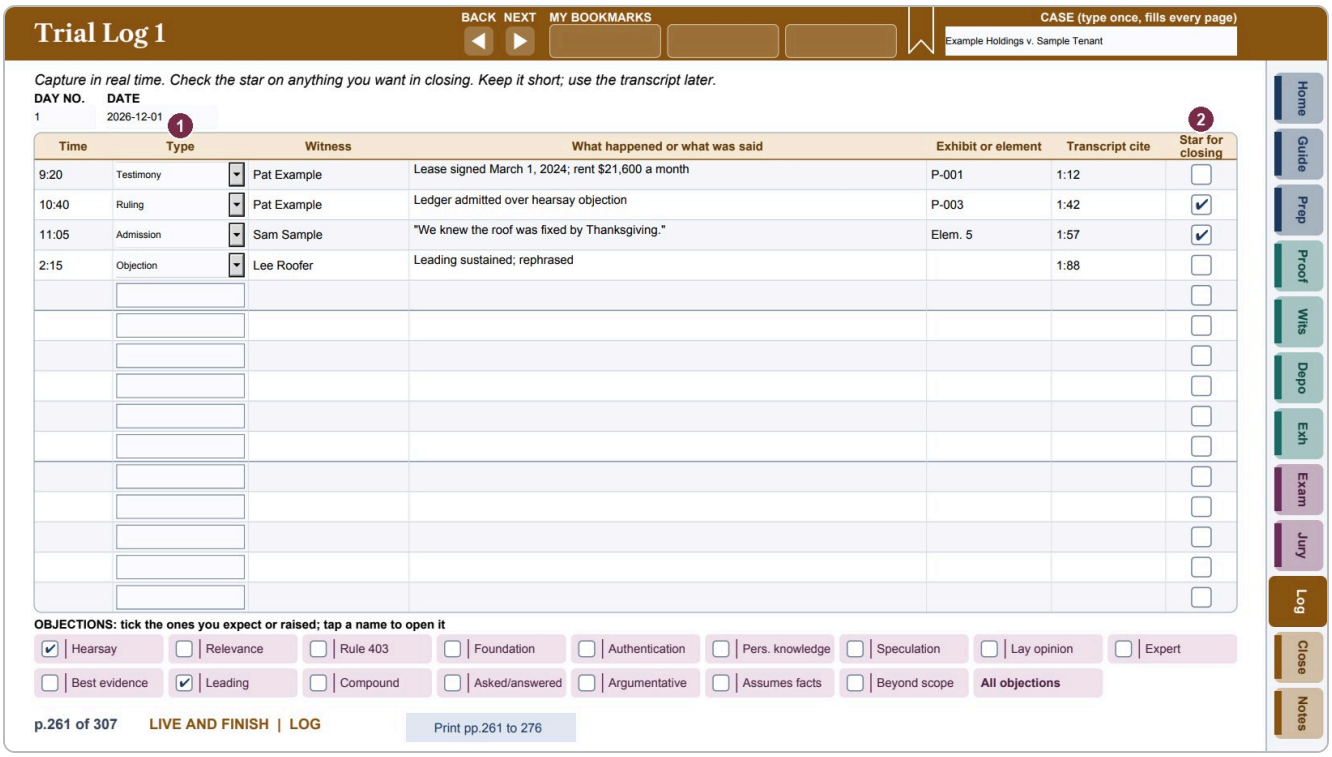


Figure 32. The Trial Log.

1. Type: pick the kind of entry from the list.
2. Star for closing: tick it, and the entry is your closing material.

Closing: plan, elements, rebuttal and damages

The **Closing Argument Plan** is an eight-step skeleton built from the proof charts and the starred log entries: open with the theme, state what you are asking for, give the road map, walk the elements, credibility, meet their best argument, damages or relief, and return to the theme.

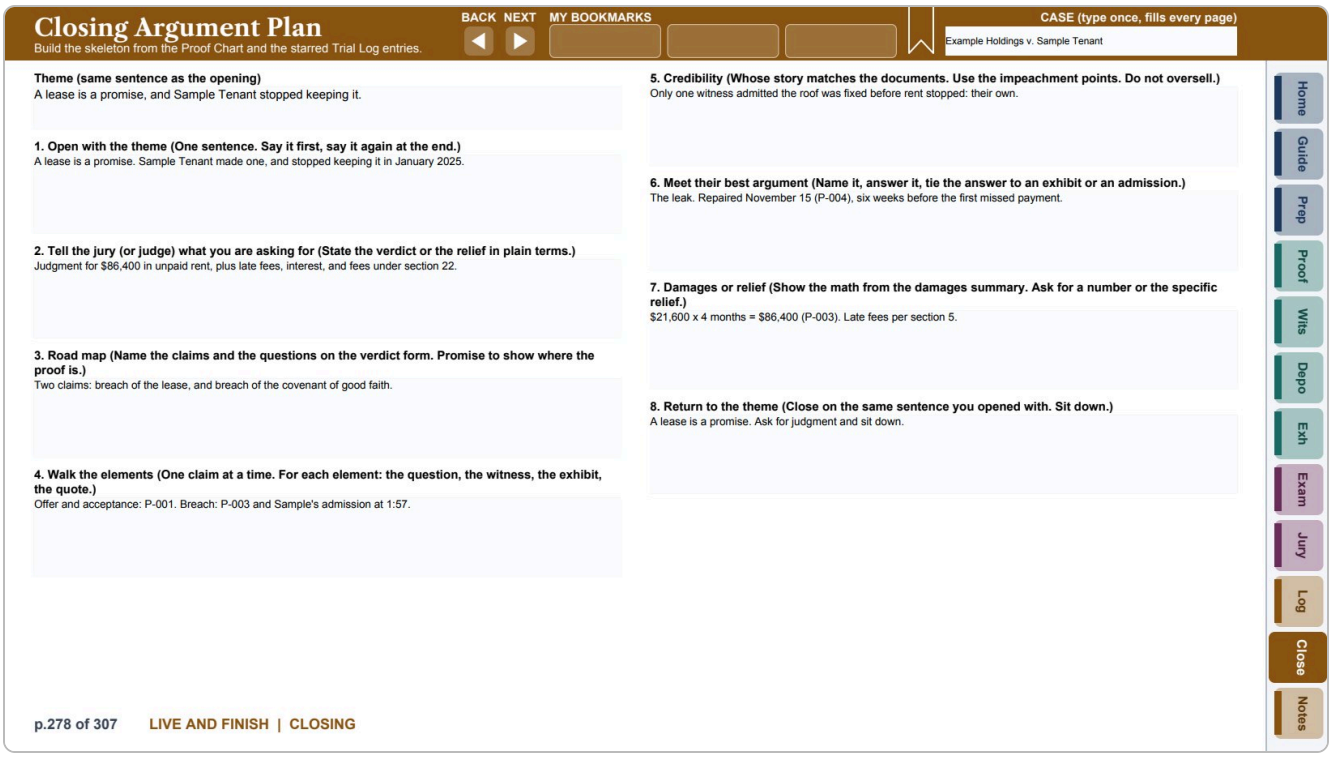


Figure 33. The Closing Argument Plan.

The **Claim Elements** pages carry each claim's elements over from its proof chart. For each one, write the best proof (testimony, admissions and quotes with cites), the exhibits to show, how you will say it, and tick Done.

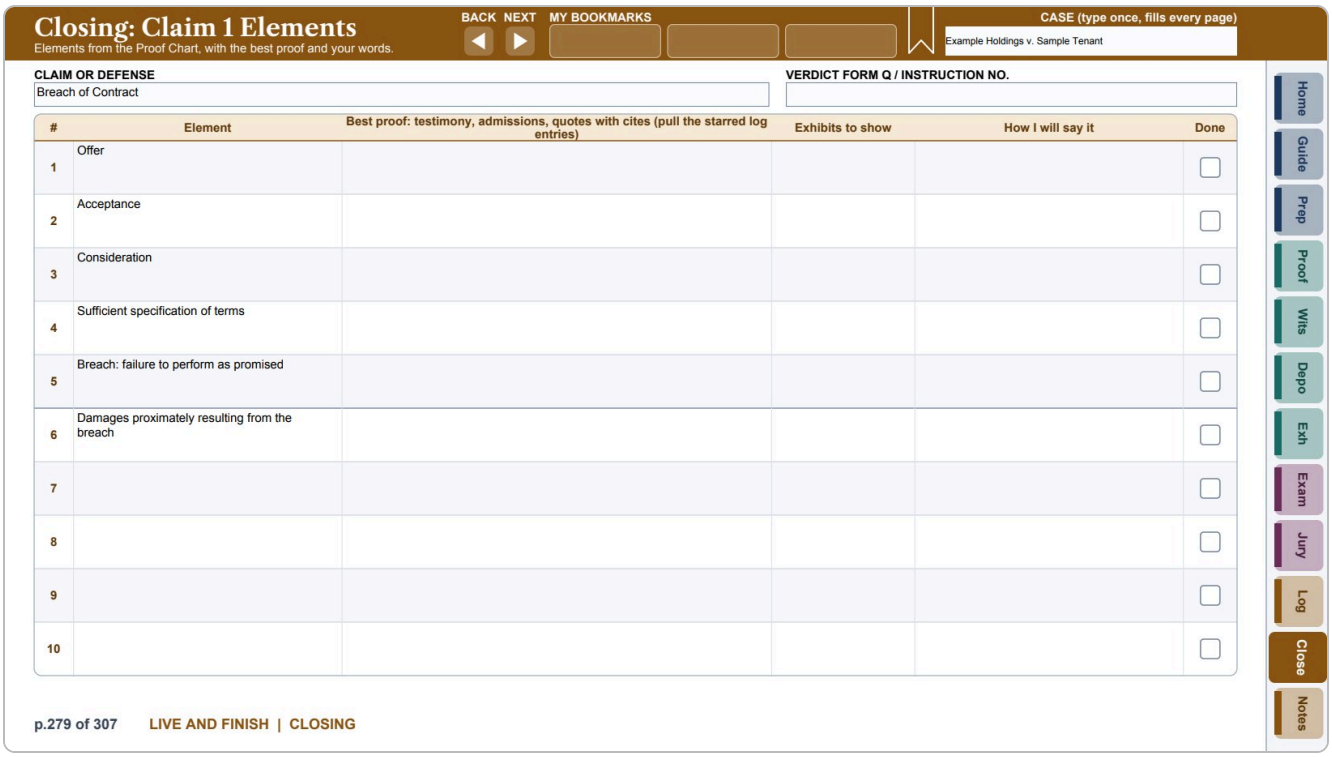


Figure 34. Closing: Claim Elements.

Their Best Arguments and Our Answers pairs each argument with your answer, the evidence and the law. **Damages and Relief Summary** shows the math: every item, the amount, how it was calculated, and the exhibit or witness, with the total, fees, costs and interest. **Bench Trial: Findings and Conclusions** drafts the findings of fact and conclusions of law you want, the credibility points, and the relief to request.

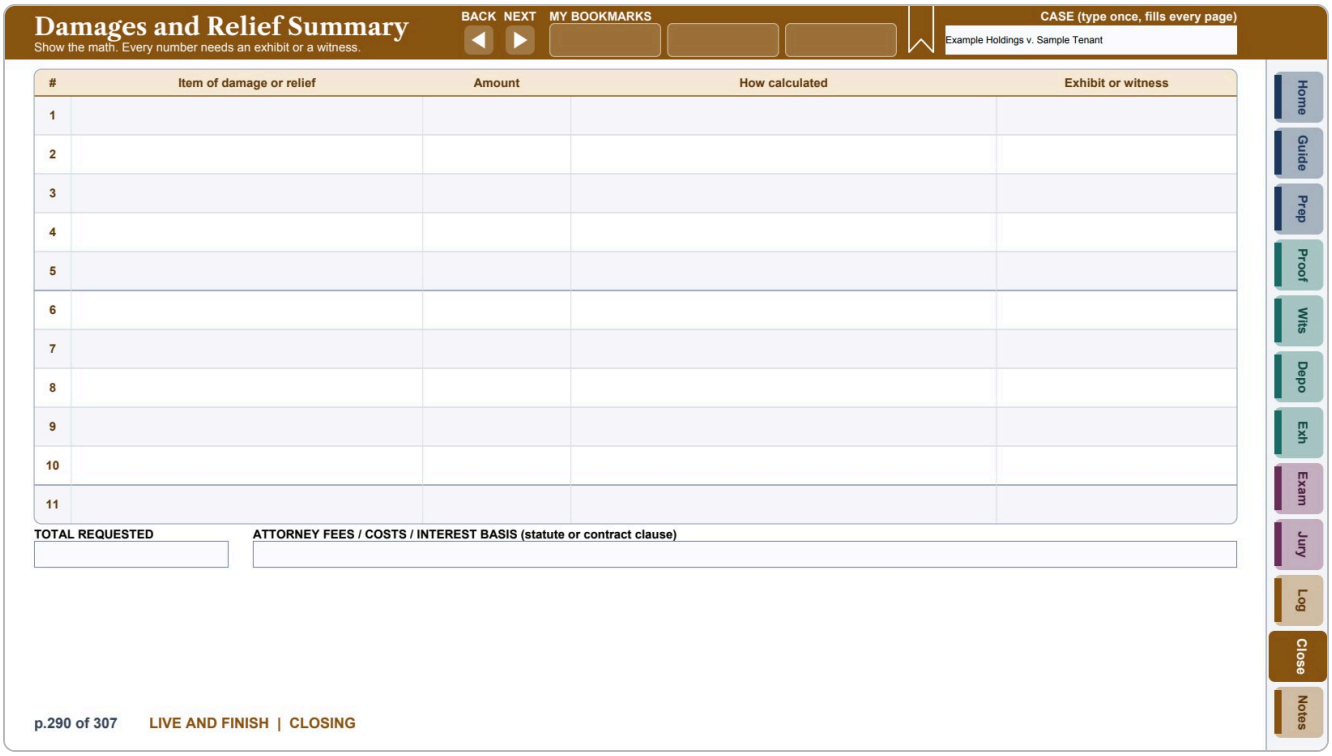


Figure 35. Damages and Relief Summary.

Notes: sticky notes

The Notes tab has six pages of sticky notes, six notes to a page. Type a title on the colored band and the note in the body.

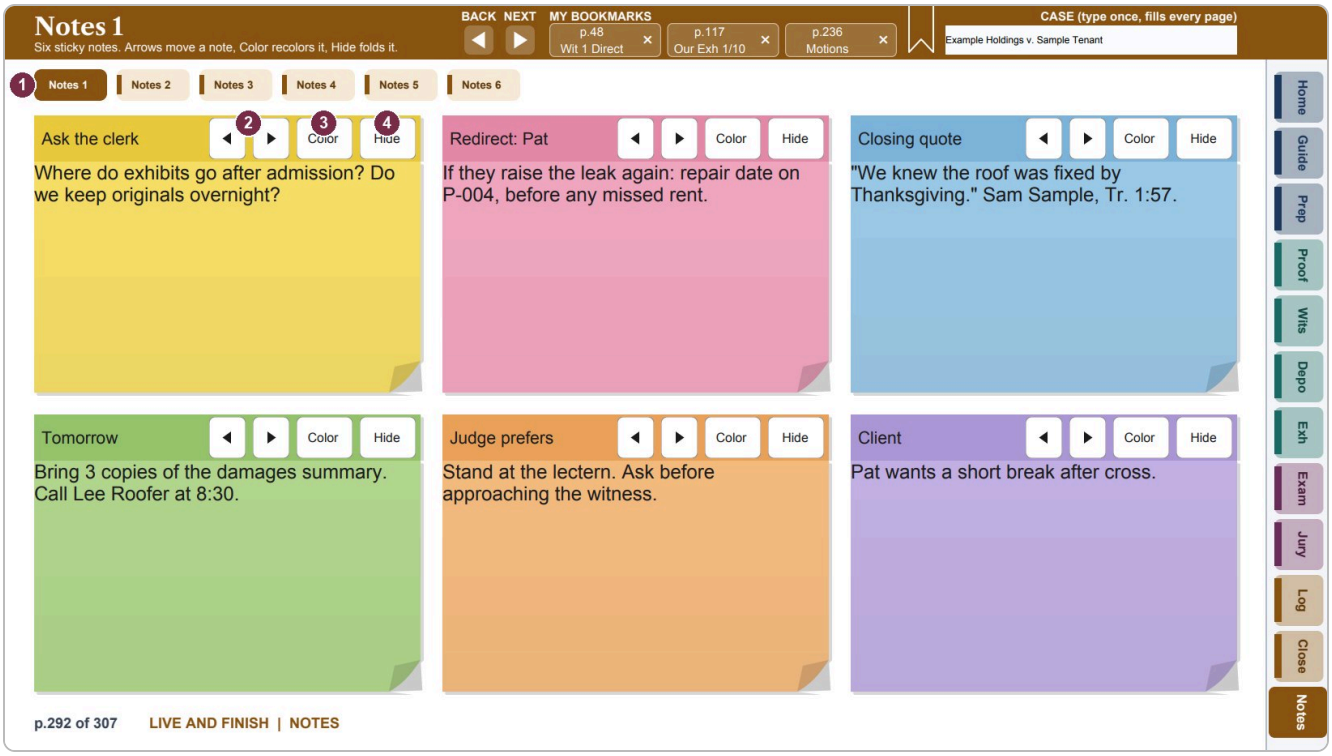
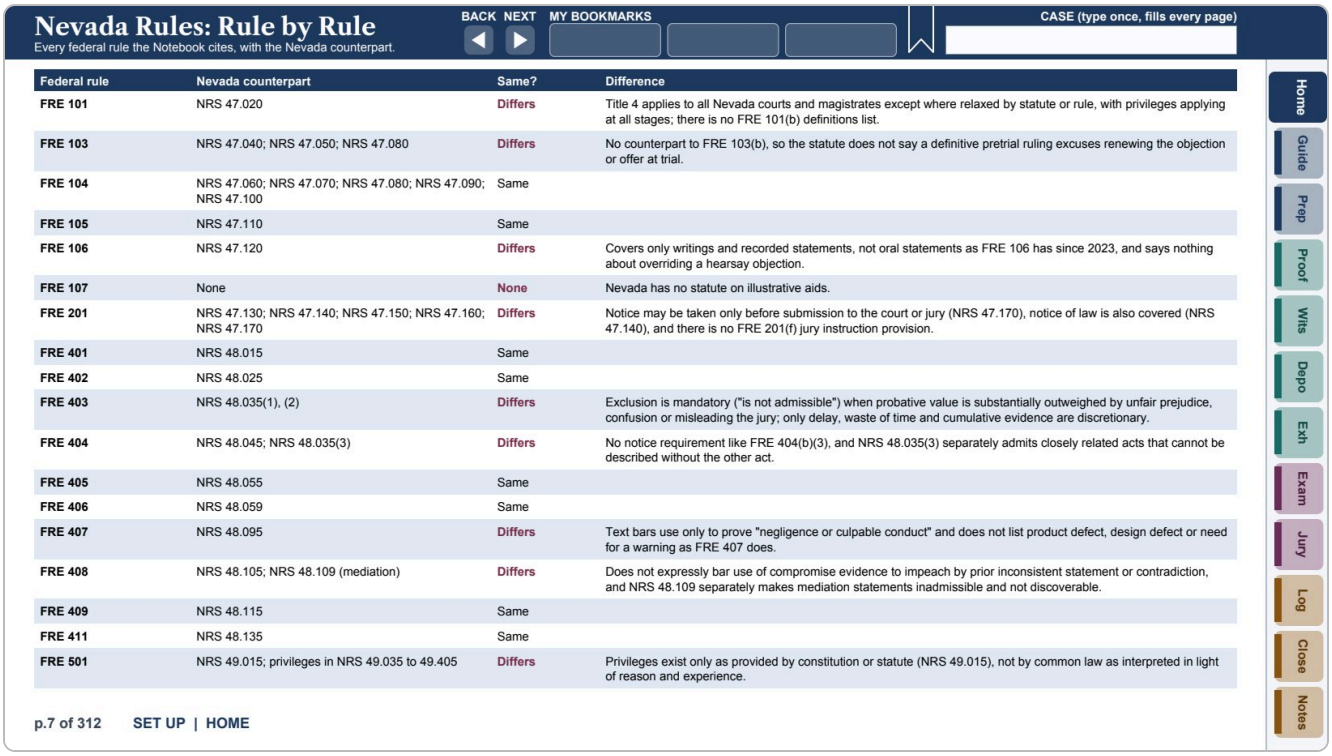


Figure 36. Sticky notes.

1. The Notes 1 to Notes 6 buttons switch between the six Notes pages.
2. The arrows move a note left or right on the page. Its title, text and color move with it.
3. Color: tap, then pick one of six colors.
4. Hide folds the note to its title band. Show opens it again.

Professional edition extras

- **State rules.** A Professional copy can include the rules of one or more states. The first state fills in the Jurisdiction page and every "Your state" blank. Each additional state gets its own State Rules section at the front, with a rule-by-rule comparison to the federal rules.
- **Print buttons.** These list pages have a Print button at the foot of the page that prints the whole list, all its pages, to paper or to a PDF: the chronology, witness lists, each witness's pages, the exhibit lists, designations, motions, rulings, panel tracker, instructions and trial log.
- **More room** (see the table in Part One), the Defenses Dashboard and defense charts, and you can add your own pages at the end.
- **The Hearing Notebook** is included.



Federal rule	Nevada counterpart	Same?	Difference
FRE 101	NRS 47.020	Differs	Title 4 applies to all Nevada courts and magistrates except where relaxed by statute or rule, with privileges applying at all stages; there is no FRE 101(b) definitions list.
FRE 103	NRS 47.040; NRS 47.050; NRS 47.080	Differs	No counterpart to FRE 103(b), so the statute does not say a definitive pretrial ruling excuses renewing the objection or offer at trial.
FRE 104	NRS 47.060; NRS 47.070; NRS 47.080; NRS 47.090; NRS 47.100	Same	
FRE 105	NRS 47.110	Same	
FRE 106	NRS 47.120	Differs	Covers only writings and recorded statements, not oral statements as FRE 106 has since 2023, and says nothing about overriding a hearsay objection.
FRE 107	None	None	Nevada has no statute on illustrative aids.
FRE 201	NRS 47.130; NRS 47.140; NRS 47.150; NRS 47.160; NRS 47.170	Differs	Notice may be taken only before submission to the court or jury (NRS 47.170), notice of law is also covered (NRS 47.140), and there is no FRE 201(f) jury instruction provision.
FRE 401	NRS 48.015	Same	
FRE 402	NRS 48.025	Same	
FRE 403	NRS 48.035(1), (2)	Differs	Exclusion is mandatory ("is not admissible") when probative value is substantially outweighed by unfair prejudice, confusion or misleading the jury; only delay, waste of time and cumulative evidence are discretionary.
FRE 404	NRS 48.045; NRS 48.035(3)	Differs	No notice requirement like FRE 404(b)(3), and NRS 48.035(3) separately admits closely related acts that cannot be described without the other act.
FRE 405	NRS 48.055	Same	
FRE 406	NRS 48.059	Same	
FRE 407	NRS 48.095	Differs	Text bars use only to prove "negligence or culpable conduct" and does not list product defect, design defect or need for a warning as FRE 407 does.
FRE 408	NRS 48.105; NRS 48.109 (mediation)	Differs	Does not expressly bar use of compromise evidence to impeach by prior inconsistent statement or contradiction, and NRS 48.109 separately makes mediation statements inadmissible and not discoverable.
FRE 409	NRS 48.115	Same	
FRE 411	NRS 48.135	Same	
FRE 501	NRS 49.015; privileges in NRS 49.035 to 49.405	Differs	Privileges exist only as provided by constitution or statute (NRS 49.015), not by common law as interpreted in light of reason and experience.

Figure 37. A State Rules page (Nevada, in a copy with Arizona as the primary state).

Part Three: The OnTrial Hearing Notebook

How it fits together

The Hearing Notebook is built around one idea: you argue from a single page, and everything behind it is one tap away. Prepare on your computer in this order:

1. **Case Information**: the court, hearing, matter heard, and counsel.
2. **Preparation Outline**: write the opening and close in full, then one page per main point, with its facts and citations.
3. **Speaking Outline**: two or three keywords per point, plus the opening and close as you will say them. This is the page you look at while you argue.
4. **Sources**, **Legal Authorities**, **Rebuttal** and **The Record**: filled in as you build the points.
5. **Case Copies**: copies of the key cases and papers, inserted at the back, so they open without a connection.

The header band, the CASE box, BACK and NEXT, the bookmarks and the sticky notes work exactly as in the OnTrial Notebook (see Part Two). The Hearing Notebook has nine tabs: Home, Guide, Argue (the Speaking Outline, Preparation Outline and Rebuttal), Sources, Law (Legal Authorities), Copies (Case Copies), Record, Prep (the Pre-hearing Checklist) and Notes.

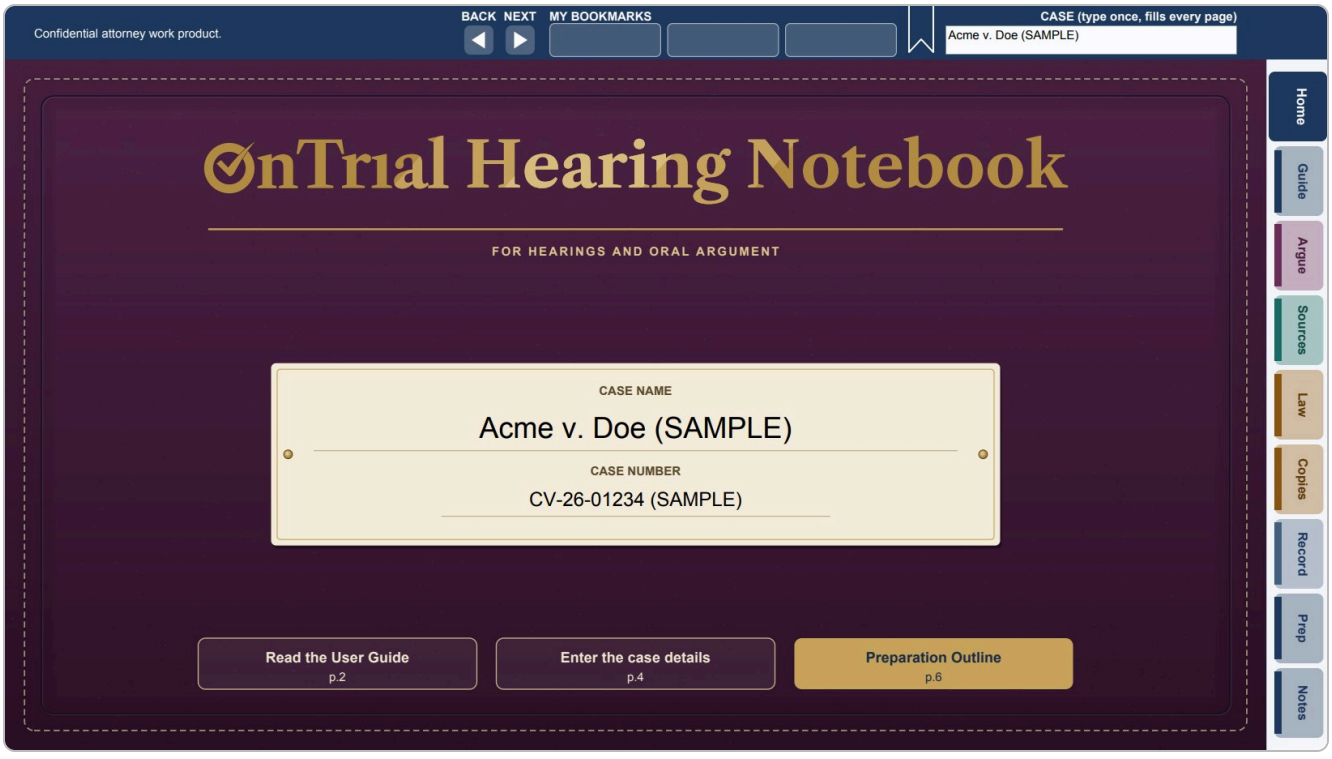


Figure 38. The Hearing Notebook title page.

The Speaking Outline

The Speaking Outline is a chalkboard: glance down, say it, look up. It holds your opening, your main points as keywords, and your close.

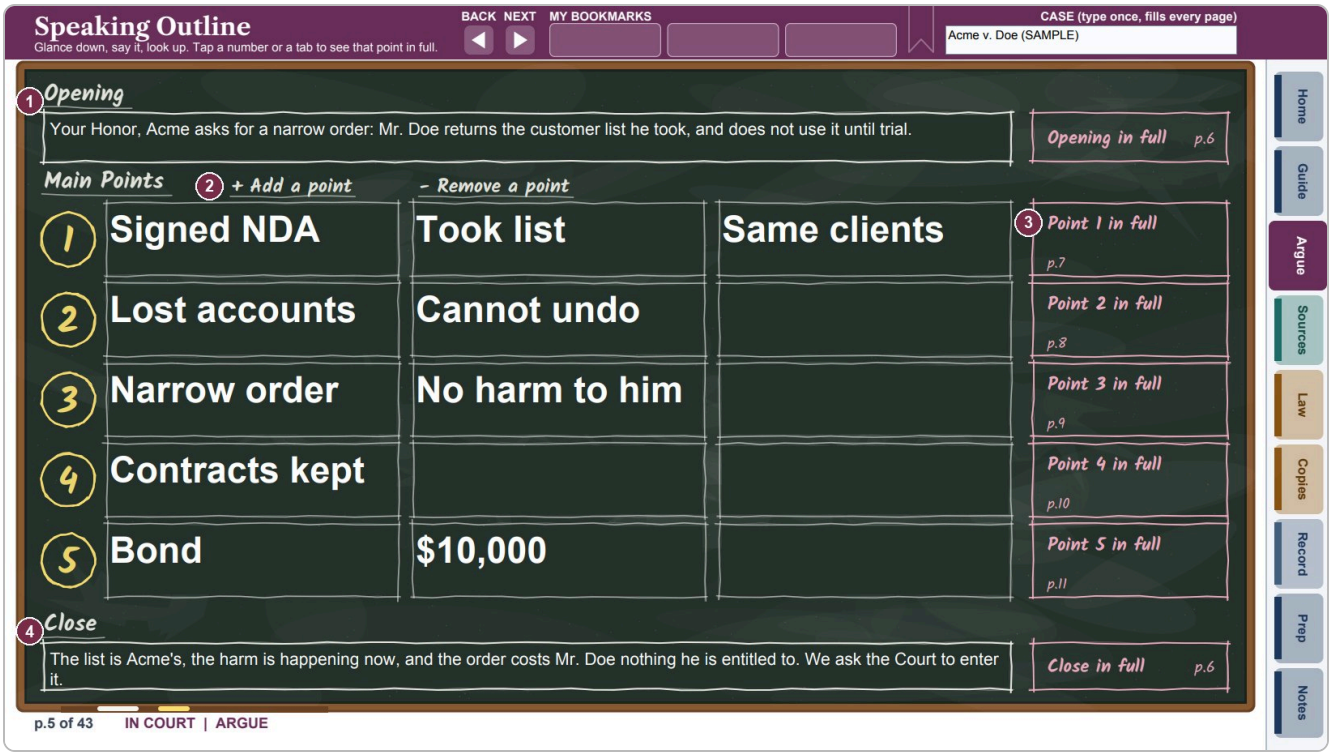


Figure 39. The Speaking Outline.

1. Opening: what you will say first, word for word.
2. + Add a point and - Remove a point: three to seven points. The keywords get larger when there are fewer points.
3. Tap a point's number or its tab on the right to open its Preparation Outline page.
4. Close: what you will say last.

- Give each point **two or three keywords**, no more. They are reminders, not sentences.
- The outline opens with four points. Tap **+ Add a point** for up to seven, or **- Remove a point** for as few as three. The keywords grow or shrink to fill the board.
- When you clear a box, a chalk eraser appears in it. While you type, the text turns dark so you can read it over PDF Viewer's yellow typing tint; it turns back to chalk white when you leave the box.
- Tap a point's number, or its tab, to see that point in full; tap **Opening in full** or **Close in full** for those. Every Preparation Outline page has a **Back to Speaking Outline** button.

The Preparation Outline

Opening and Close holds both in full: the opening as you will say it, the exact relief you ask for, the road map of your points, the close as you will say it, and the close in full with the points to land and the exact

ask. The short versions are the same boxes as on the Speaking Outline.

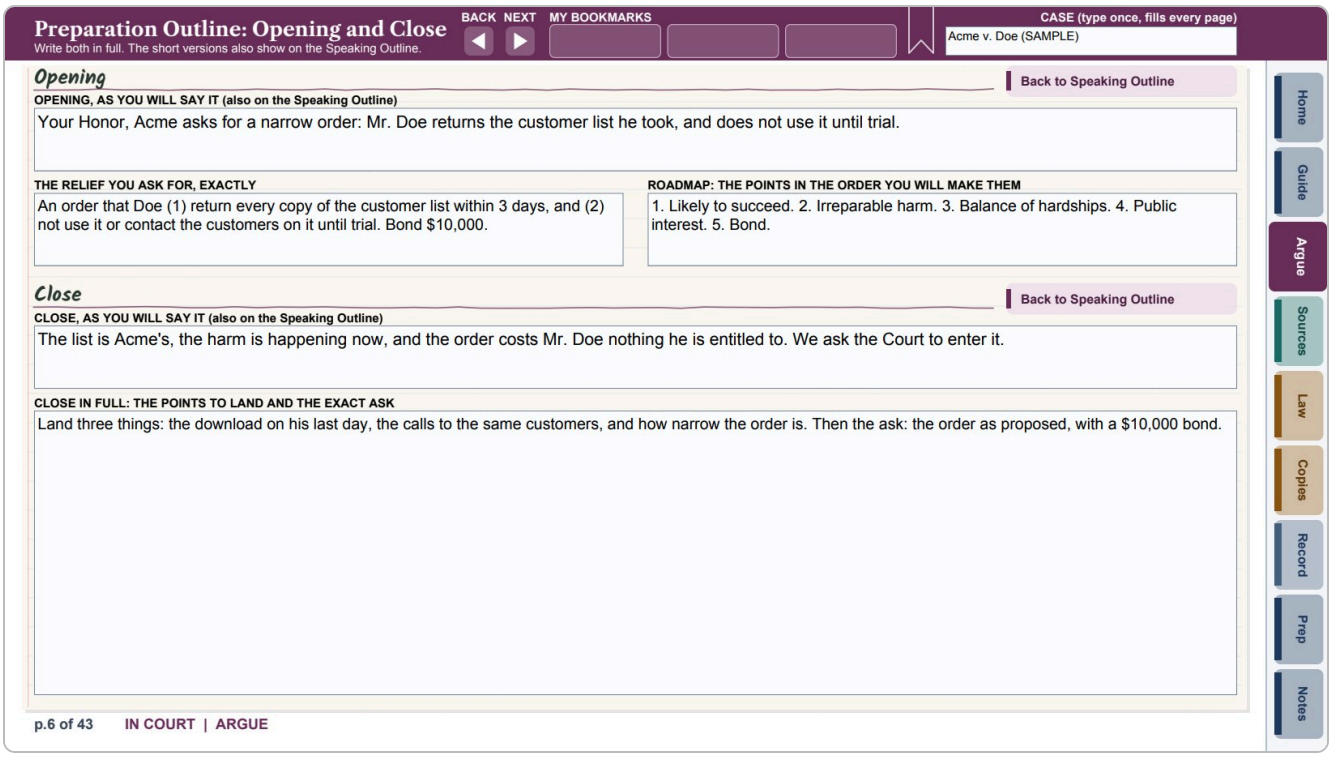


Figure 40. Preparation Outline: Opening and Close.

Each **point page** holds that point's keywords (the same boxes as on the Speaking Outline), the point in full, and up to eight bullets, each a fact or a citation.

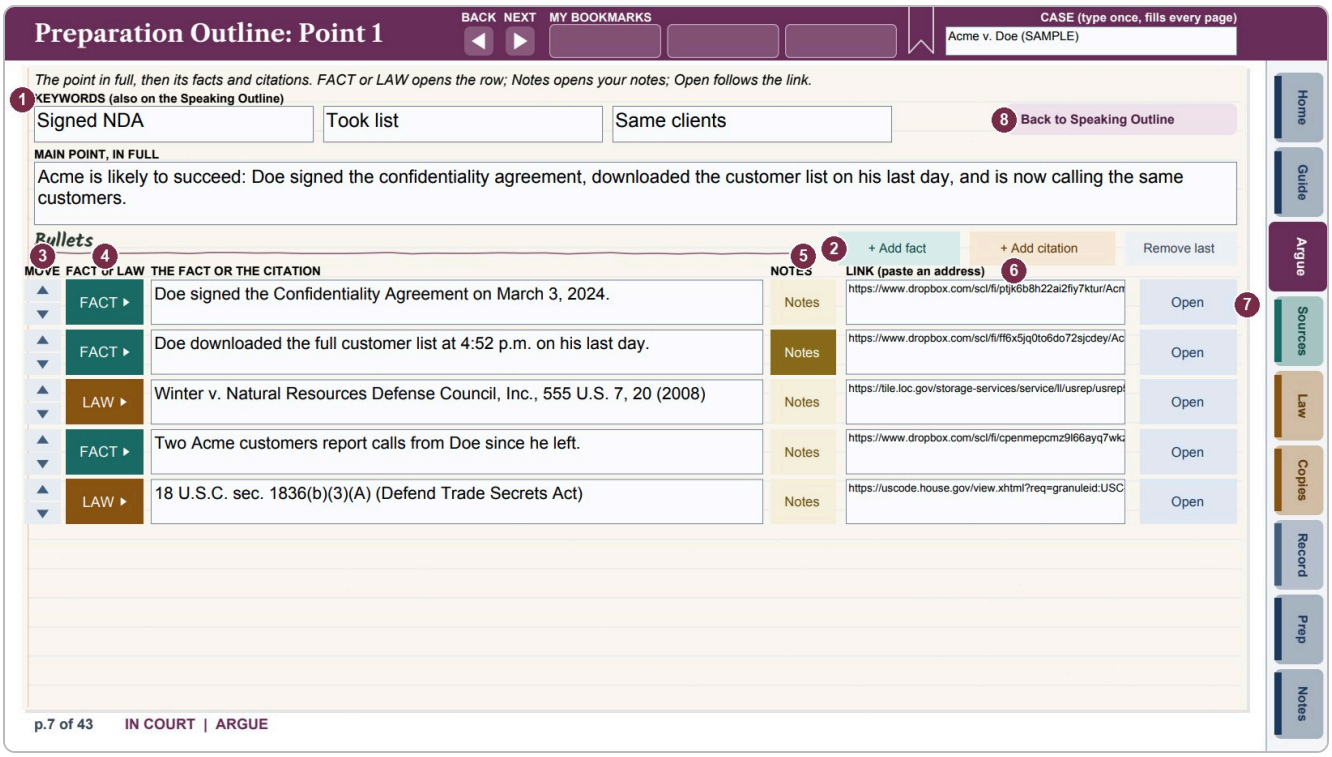


Figure 41. A Preparation Outline point page.

1. Keywords: the same boxes as the point's keywords on the Speaking Outline.
2. + Add fact and + Add citation add a bullet. Remove last asks you to confirm, then takes the last bullet away and clears its row on Sources or Legal Authorities.
3. The arrows move a bullet up or down.
4. FACT or LAW opens the bullet's row on the Sources or Legal Authorities page.
5. Notes opens notes for the bullet that stay hidden until you want them. The tab turns gold when a bullet has a note.
6. Link: paste an address (Westlaw, Lexis, a docket entry, a Dropbox or iCloud file).
7. Open follows the link.
8. Back to Speaking Outline.

1. State the point in full, the way you would write it in a brief.
2. Tap **+ Add fact** or **+ Add citation** for each bullet, and type the fact or the citation.
3. Paste a link if you have one, and tap **Open** to check it works.
4. Tap **Notes** on a bullet for room to write more about it; tap again to close the notes.

Sources and Legal Authorities

Every fact you add to a point gets a row on that point's **Sources** page, and every citation a row on its **Legal Authorities** page, with the same text and link. Add the document and pin cite (for a fact) or the pin cite and what it supports (for an authority), and the page a copy starts on in the Case Copies section. In each row, **Go** jumps to the copy, **Open** follows the link, and **Back** returns to the point.

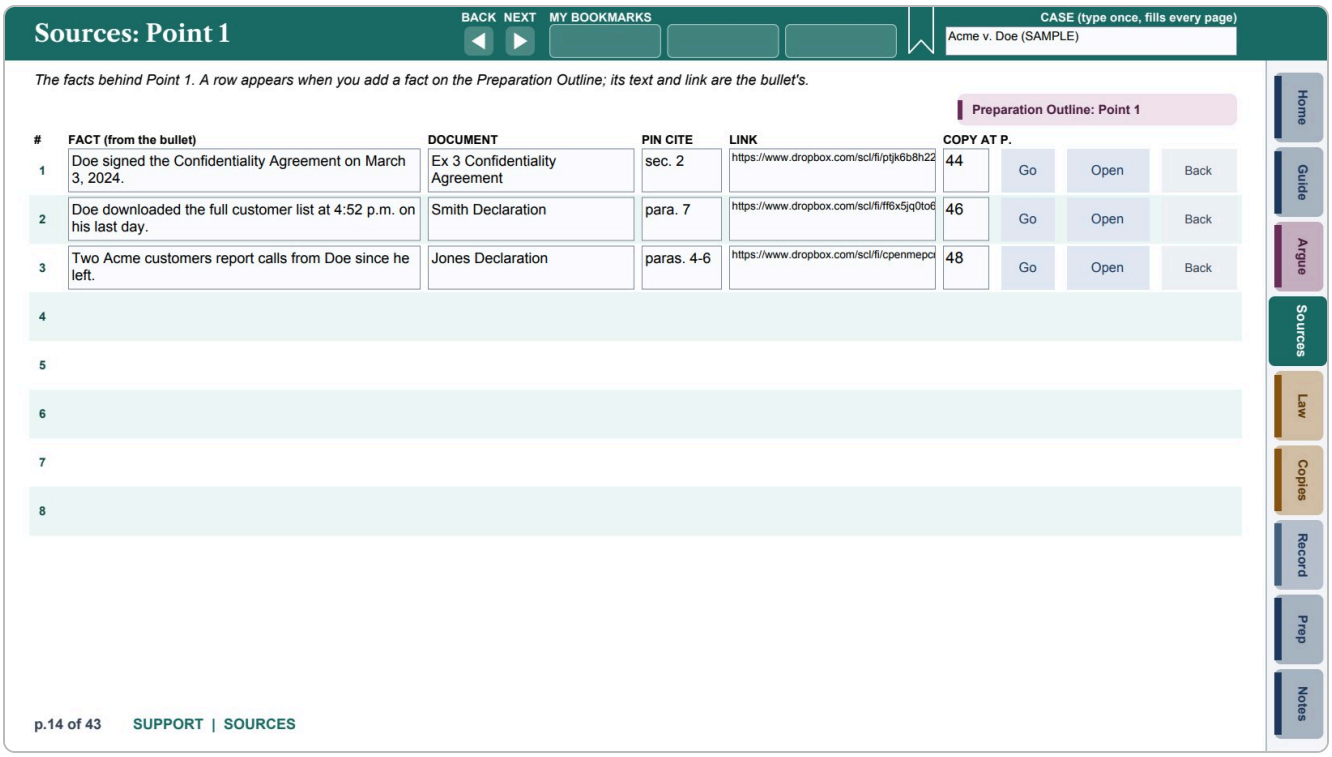


Figure 42. Sources: the facts behind a point.

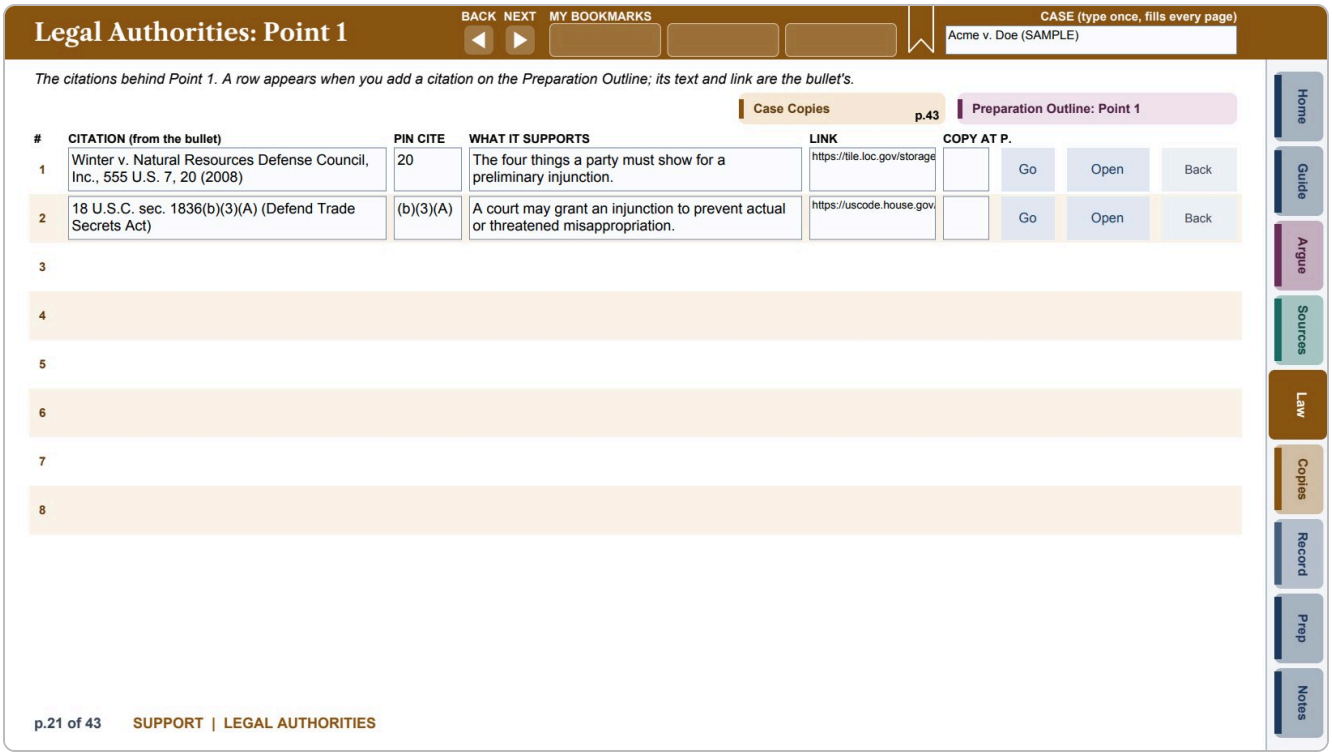


Figure 43. Legal Authorities: the citations behind a point.

Rebuttal and The Record

On the **Rebuttal** page, list the counterarguments you expect. When the other side argues one, tick **Argued**, so you answer it. The rows under Raised at the hearing are for points you did not expect.

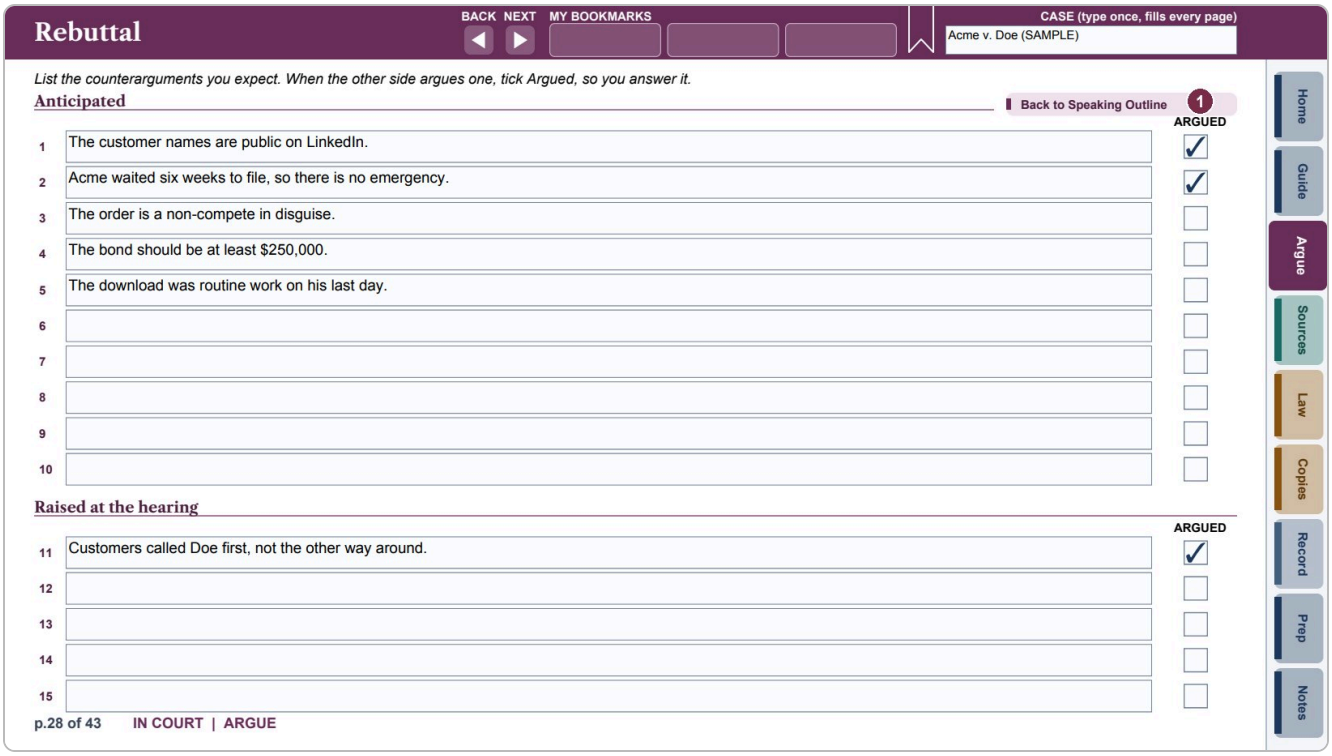


Figure 44. Rebuttal.

1 Argued: tick when the other side raises it.

The Record (two pages) lists the orders, motion, response, reply, declarations, exhibits and transcripts: the type, title, who filed it, the date, the docket number, the key pages or paragraphs, the link, and the page its copy starts on, with Go and Open buttons.

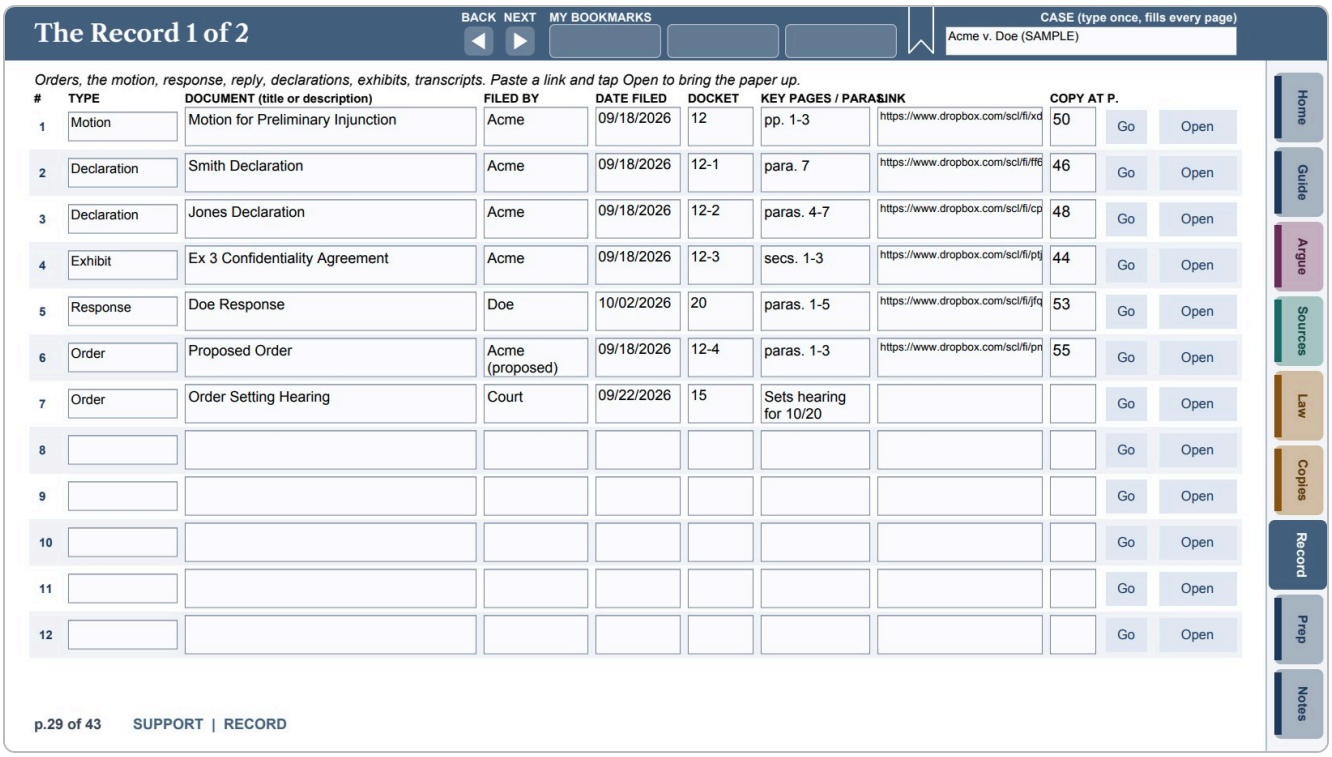


Figure 45. The Record.

Case Copies

Courthouse wifi fails. A link needs a connection; a copy inside the notebook opens anywhere, at once. The Case Copies page is the last page of the notebook, so copies you add go after it and no page number before it moves.

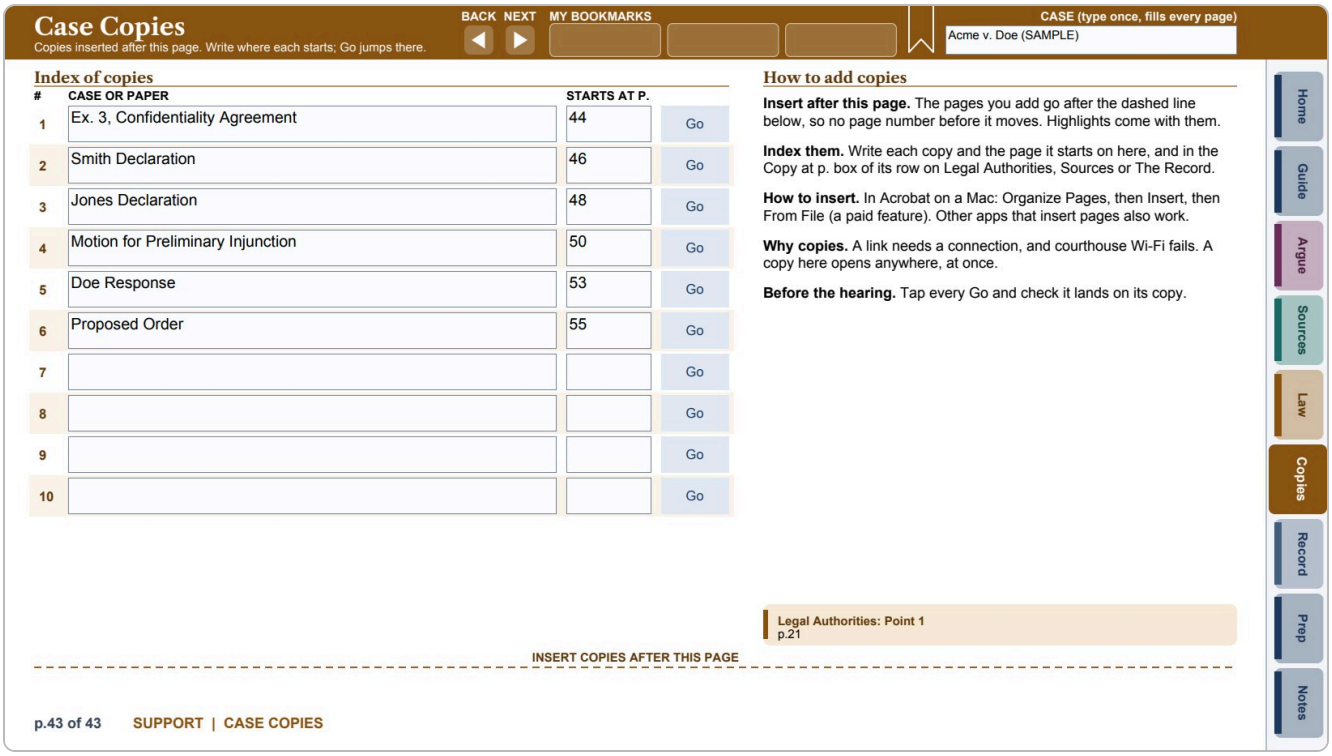


Figure 46. Case Copies.

1. Insert each copy after the Case Copies page. In Acrobat on a Mac: Organize Pages, then Insert, then From File (a paid Acrobat feature). Other apps that insert pages also work.
2. In the index, write each copy and the page it starts on. Write the same page in the Copy at p. box of its row on Sources, Legal Authorities or The Record.
3. Before the hearing, tap every **Go** and check it lands on its copy.

Pre-hearing Checklist and Notes

The **Pre-hearing Checklist** covers what to confirm before you leave for court: the time and courtroom or remote link, the time allowed, the judge's procedures, every paper and link, every citation checked, the outlines final, the proposed order, witnesses and exhibits for an evidentiary hearing, the court reporter and interpreter, the iPad, and the client. The **Notes** page has six sticky notes, as in the OnTrial Notebook.

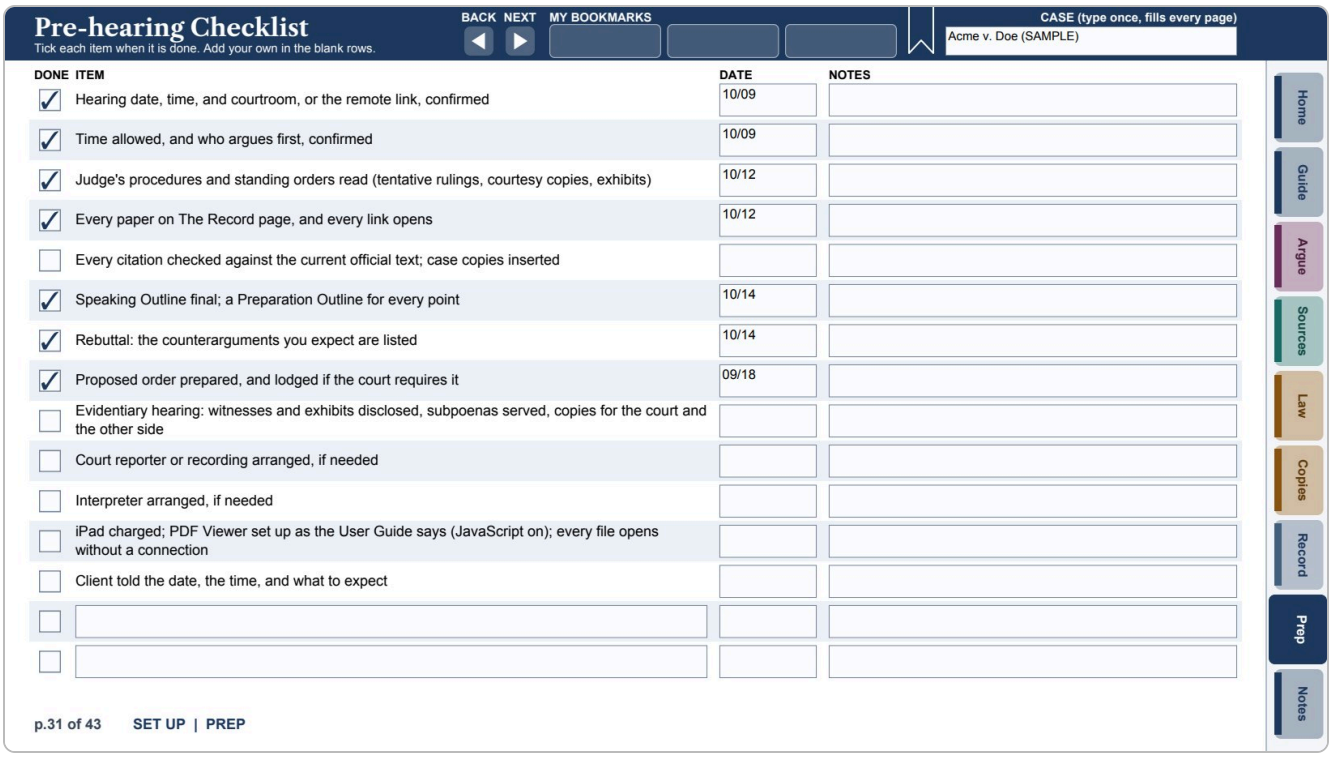


Figure 47. The Pre-hearing Checklist.

Part Four: Troubleshooting and help

Buttons, bookmarks or sticky notes do nothing on the iPad.

Make sure the notebook is open in PDF Viewer by Nutrient, not in Acrobat Reader for iPad, Books or the Files preview. Then open PDF Viewer's settings and make sure JavaScript is on, then close the notebook and open it again. Check that the file was never saved in Preview; if it was, start a new copy from your blank master. Plain page links (the tabs, BACK and NEXT, the index buttons) work even without JavaScript.

The first tap takes a few seconds.

In a large notebook, the first button that runs a script after the file opens takes a moment. After that, taps are quick.

The top of the page is cut off, or pages scroll together.

Use the PDF Viewer settings in Part One: Page Transition Jump, Page Mode Single, Scroll Direction Horizontal, Page Fitting Adaptive.

The colors look brown or all one color.

PDF Viewer is in Sepia or Night mode. Set Appearance to Default (the white button).

A box turns yellow while I type.

That is PDF Viewer showing which box you are typing in. The notebook cannot turn it off; it goes away when you leave the box.

The ribbon does not turn burgundy on the iPad.

PDF Viewer cannot color the ribbon. Your bookmark is still in the slot; the ribbon turns burgundy in Acrobat.

Buttons do nothing on Windows.

Open the notebook in Adobe Acrobat Reader, not in Edge or another browser.

I see a "Modified copy" notice.

The notebook checks itself when it opens. If its pages or parts have been changed, it shows the notice. Your entries are safe; contact support for a clean copy with your entries carried over.

I have two versions of a case copy.

The file was saved on two devices while it was open on both. Keep the newer one. Next time, close the file on one device before you open it on the other.

How do I print?

Use your PDF app's Print command and choose the pages. In the Professional edition, the Print button on a list page prints the whole list.

Does the notebook send my information anywhere?

No. What you type stays in the file on your device. The notebook does not send it to OnSide Software or anyone else. The Hearing Notebook's Open buttons go only to the addresses you paste in.

Getting help. The help assistant on onsidesoftware.com answers questions about both notebooks. For anything else, write to support@onsidesoftware.com.

The notebooks are organizing and reference tools. They are not legal advice and do not create an attorney-client relationship. Check every rule, citation and deadline against current official sources and your court's local rules. Use is governed by the OnSide Software Terms of Service, at the back of each notebook.

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